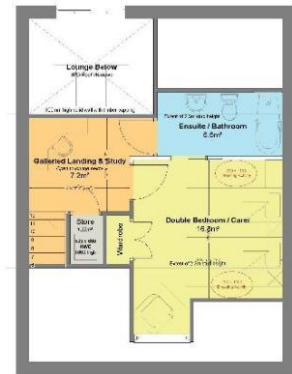




ADDITIONAL ENHANCEMENTS TO EXCEED BUILDING REGULATIONS 2020

- Ground Floor bathroom meets Approved Document PART M4(2) Category 2 for accessible and adaptable dwellings with level access throughout
- 350mm thick External Wall makeup with full floor insulation
- First Floor Bathroom meets Approved Document PART M4(2) Category 2 for accessible and adaptable dwellings
- All corridors at least 1050mm wide and internal doors permit accessible access
- Roof integrated Photo Voltaic panels
- Electric Car charging point when parking space adjacent to property
- Air Source Heat Pump for heating & hot water



Technical & Developer Requirements Supplementary Planning Document



Adopted August 2023



**City of
Doncaster
Council**

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1. Introduction

1.1. Purpose of the Document

- 1.1.1. This Technical and Developer Requirements SPD has been prepared to clarify the expectations of the Council in relation to technical matters that need to be taken into account when submitting planning applications. These cover a range of topics which are in the jurisdiction of a number of different teams in the Council. Topics cover a variety of matters, including pollution, contamination, drainage, public rights of way and refuse, as well as advising on assessments that may need to be carried out and submitted alongside planning applications.
- 1.1.2. It is not the intention of this SPD to repeat at length either local or national planning policies, or technical documents which are produced by respective teams within the Council or externally, which may be applicable to planning applications. Rather, this SPD will broadly address the main matters for each topic, and signpost where appropriate to more detailed guidance and advice.
- 1.1.3. Please note, for information on Biodiversity Net Gain, please see the [Biodiversity Net Gain SPD](#).

2. Affordable Housing

2.1. Introduction

- 2.1.1. Delivering affordable homes is a key local and national priority. Affordable homes include social rented, affordable rented, intermediate, first homes and discounted market sales homes which provide housing to eligible households whose needs are not met by the market.
- 2.1.2. In Doncaster, housing sites of fifteen or more homes (or housing sites of 0.5ha or above) are normally expected to provide affordable housing, but sites below these thresholds could still deliver affordable homes if in line with other plan policies.

2.2. Local and National Policy

- 2.2.1. NPPF policies related to affordable housing are generally plan making policies rather than decision making ones. Policy 7 of the Local Plan is the Council's response to NPPF paragraphs 60 – 65. Local Plan Policy 25 relates to Development in the Countryside Policy Area, including rural exception sites. [Planning Practice Guidance on Housing needs of different groups](#) provides advice on affordable housing and rural exception sites.
- 2.2.2. Policy 7 part a of the Local Plan sets out that new housing development will be expected to deliver a range of house sizes, types and tenures having regard to the Council's latest [Housing Needs Study](#) or other robust up to date evidence. An extract from the 2019 Housing Needs Study related to dwelling type and mix is reproduced in Appendix 4 of the Local Plan.
- 2.2.3. Policy 7 part b states that sites of 15 or more houses (or 0.5ha+) will be expected to deliver 23% or 15% of sites as affordable housing, depending on whether the sites fall within the Borough's high value market areas, or low value market areas respectively (set out in Appendix 5 of the Local Plan). The tenure split of this should be 75% affordable homes for rent and 25% intermediate low cost home ownership. Policy 7 part c notes that commuted sums in lieu of onsite affordable housing provision will only be accepted where robustly justified and where there is already an identified surplus of affordable housing in the community. Commuted sums would therefore be used to target other areas in need in the Borough.

2.3. Types of Affordable Housing

- 2.3.1. Affordable housing broadly falls into the following categories:

Affordable Housing for Rent

- 2.3.2. This housing type meets all of the following conditions:
 - a) the rent is set in accordance with the Government's rent policy for Social Rent or Affordable Rent, or is at least 20% below local market rents (including service charges where applicable);
 - b) the landlord is a registered provider, except where it is included as part of a Build to Rent scheme (in which case the landlord need not be a registered provider); and
 - c) it includes provisions to remain at an affordable price for future eligible households, or for the subsidy to be recycled for alternative affordable housing provision. For Build to Rent schemes affordable housing for rent is expected to be the normal form of affordable housing provision (and, in this context, is known as Affordable Private Rent).

Discounted Market Sales Housing

- 2.3.3. Discounted market sales housing is sold at a discount of at least 20% below local market value. Eligibility is determined with regard to local incomes and local house prices. Provisions should be in place to ensure housing remains at a discount for future eligible households.

First Homes

- 2.3.4. First homes are a specific kind of discounted market sale housing. Specifically, First Homes are discounted market sale units which:
- a) must be discounted by a minimum of 30% against the market value;
 - b) are sold to a person or persons meeting the [First Homes eligibility criteria](#);
 - c) on their first sale, will have a restriction registered on the title at HM Land Registry to ensure this discount (as a percentage of current market value) and certain other restrictions are passed on at each subsequent title transfer; and
 - d) after the discount has been applied, the first sale must be at a price no higher than £250,000 (or £420,000 in Greater London).

Other Affordable Routes to Home Ownership

- 2.3.5. This is housing provided for sale which provides a route to ownership for those who could not achieve home ownership through the market. It includes shared ownership, relevant equity loans, other low cost homes for sale (at a price equivalent to at least 20% below local market value) and rent to buy (which includes a period of intermediate rent). Where public grant funding is provided, there should be provisions for the homes to remain at an affordable price for future eligible households, or for any receipts to be recycled for alternative affordable housing provision, or refunded to government or the relevant authority specified in the funding agreement.

2.4. Establishing the Requirement for Affordable Housing

- 2.4.1. Appendix 5 of the Local Plan provides a map of the Borough's high and low value housing areas. Where housing sites fall into the higher value areas (green), then 23% is the affordable housing requirement, and where they fall into the lower value areas (yellow), then the requirement is 15%.
- 2.4.2. Once the policy ask for a site is established, officers will decide whether that need should be provided onsite (that is, there is a demonstrable need for affordable housing in the area), offsite (via commuted sum - where there is not a need for more affordable housing in the area), or whether that need could be met part onsite, part offsite.
- 2.4.3. This decision will be made by officers at application stage, having regard to the latest Housing Needs Study (see Appendix 4 of the Local Plan or successor study) as well as other information such as Council House bidding or waiting list information, demographics and deprivation information etc.
- 2.4.4. Informed by the Housing Needs Study and other data sets and information, officers will also advise and negotiate on the types of affordable properties required on the development and their location within it. This varies from settlement to settlement based on local housing need data, other relevant information and each site development layout.

- 2.4.5. Once the requirement has been established, developers can negotiate with Housing Associations (who have to be a Registered Provider¹) to purchase these S106 properties on completion and take responsibility for their future management and maintenance including the tenancies.
- 2.4.6. It should be noted that in the case of flats and apartments, it is unlikely that Housing Associations will want to purchase these unless the scheme or complex (if a component of a wider scheme) is for 100% affordable housing. In such cases, an offsite contribution may be sought.

2.5. Affordable Rural Housing

- 2.5.1. The Local Plan defines settlements within the Borough, including the Main Urban Area, seven Main Towns, ten Service Towns and Villages, and forty Defined Villages. Outside of the defined limits of these, land is either Green Belt (to the west of the Borough), or Countryside Policy Area (to the east of the Borough). Policy 25 of the Local Plan covers development in the Countryside, and defers to national policy on Green Belt.
- 2.5.2. NPPF paragraph 78 requires that decision making should be responsive to local circumstances and support housing which reflects local needs. Local planning authorities are asked to support opportunities to bring forward rural exception sites to provide for identified local needs. Market housing could also be considered to help facilitate this. Such development is an 'exception' to the policies in the Local Plan.

Rural Exception Sites

- 2.5.3. Rural exception sites can come forward in any rural location, including Green Belt, where rural exception sites are the only sort of exception site that can come forward.
- 2.5.4. Rural Exception sites are small sites used for affordable housing in perpetuity where sites would not normally be used for housing. Rural exception sites seek to address the needs of the local community by accommodating households who are either current residents or have an existing family or employment connection. A proportion of market homes may be allowed on the site at the local planning authority's discretion, for example where essential to enable the delivery of affordable units without grant funding. These sites are normally just outside of the existing residential development limit of the rural settlement on land designated as Countryside Policy Area or Green Belt.
- 2.5.5. Rural exception sites should address the affordable housing needs of the local community. They can deliver any form of affordable housing, including First Homes. However, this must be supported by appropriate evidence of local need, such as a local housing needs survey.

Entry-Level Exception Sites

- 2.5.6. NPPF paragraph 72 requires local planning authorities to support the development of entry-level exception sites suitable for first time buyers, on land not already allocated for housing. Such sites, if they are proposed, must comprise of entry-level homes that offer one or more types of affordable housing types. Sites should be adjacent to existing settlements and proportionate in

¹ Registered Provider as per section 114 of the Housing and Regeneration Act 2008 or a body entered on the Register as a non-profit organisation or a profit-making organisation (as such terms are defined in section 115 of the Housing and Regeneration Act 2008).

size to these (not larger than 1ha or exceed 5% of the existing settlement size). Entry-Level Exception sites are not permitted in the Green Belt.

2.6. First Homes

- 2.6.1. First Homes are a specific kind of discounted market sale housing and should be considered to meet the definition of 'affordable housing' for planning purposes.
- 2.6.2. Doncaster submitted its Local Plan for examination on 4 March 2020, and adopted it on 23 September 2021. As such the Local Plan was not required to reflect the Government's First Homes policy requirement under the transitional arrangements set out in the [Written Statement / Planning Policy Guidance](#).
- 2.6.3. As set out in the Written Ministerial Statement / Planning Policy Guidance, where local and neighbourhood plans are adopted under the transitional arrangements, the First Homes requirements will also not need to be applied when considering planning applications in Doncaster until such time as the requirements are introduced through a subsequent update to the Local Plan.
- 2.6.4. As with all Local Plans, it is a legal requirement that all policies in Doncaster's Local Plan should be reviewed to assess whether they need updating at least once every five years, and should then be updated as necessary. The Council will therefore keep its position on First Homes under review as part of this duty.



3. Air Quality

3.1. Introduction

- 3.1.1. Local air quality can be adversely affected by new developments, and conversely, poor air quality can adversely affect new development. Air quality is the largest environmental health risk in the UK. It shortens lives and contributes to chronic illness. Health can be affected both by short-term, high pollution episodes and by long-term exposure to lower levels of air pollution.²

3.2. Local and National Policy

- 3.2.1. Local Plan Policy 54 (and supporting text paragraph 13.23) covers pollution, stating with specific reference to air quality impact that when determining applications, particular consideration will be given to the impact on national air quality. An air quality assessment will be required to enable clear decision making.
- 3.2.2. The NPPF has 3 objectives as set out in paragraph 8 – economic, social and environmental. Part of the environmental objective is to minimise pollution.
- 3.2.3. NPPF paragraph 174 e) states decisions should contribute to and enhance the local environment by preventing new and existing development being put at risk from or by air pollution. Development should help improve local environmental conditions where possible.
- 3.2.4. Paragraph 186 covers air quality specifically, requiring decisions to sustain and contribute towards compliance with relevant limit values or national objectives for pollutants. Opportunities to improve air quality and mitigate impacts should be identified.
- 3.2.5. There is also [Planning Practice Guidance](#) related to air quality, which amongst other things notes that applicants should engage early with the local authority to establish the need and scope of assessment to support applications, as well as advising more widely on air quality assessments and mitigation.
- 3.2.6. For more information, applicants should refer to the most up to date [Doncaster Air Quality Technical Planning Guidance](#). This defines in detail the process required from developers in assessing and mitigating air quality impact, especially from development operational phase emissions. This underlying guidance may be subject to periodic review and amendment, however the overarching principles detailed within this Supplementary Planning Document shall remain consistent.

3.3. How Should Air Quality Impacts be Assessed at Application Stage?

- 3.3.1. Applications must assess their impact on air quality and determine appropriate action to mitigate any identified issues. The air quality assessment to be undertaken for planning applications follows a three-stage process (as discussed in the [guidance](#) and summarised below):
- 1) Determining the classification of the development proposal;
 - 2) **Assessing** and quantifying the impact on local air quality;
 - 3) Determining the **level of mitigation** required by the proposal to meet Local Plan requirements.

² Defra, PB1454, 2019, Clean Air Strategy 2019

3.3.2. The impact on air quality can be a material planning consideration in the determination of a planning application. If there are no acceptable mitigation options then the recommendation to the planning officer determining the application will be to consider refusal on air quality grounds. Any agreed measures will be taken forward where possible via condition.

3.3.3. The assessment process is summarised in [Table 1](#):

Table 1: Air Quality Assessment Process

Stage 1 – Classification of Development		
Determine what class the development is by its type and size (see Tables 1 and 2 of the Doncaster Air Quality Technical Planning Guidance to determine the class of development)		
Minor	Medium	Major
Stage 2 – Assessment		
Identify relevant assessment for your development type		
Determine if the development is introducing people close to an area where air pollution could be high	Determine if the development is introducing people close to an area where air pollution could be high	Full Modelling assessment; damage cost calculation; mitigation statement required.
Stage 3 – Mitigation		
All development shall provide mitigation against increased emissions and / or introduction of exposure to poor air quality. Mitigation shall be appropriate to the size, nature and impact of development.		
EV charging minimum standards. Additional mitigation identified through the exposure assessment as necessary.	EV charging minimum standards. Additional mitigation identified through the exposure assessment / damage costs.	EV charging minimum standards. Additional mitigation identified following the air quality assessment and damage cost calculation.



4. Archaeology

4.1. Introduction

- 4.1.1. Sites have the potential for archaeological remains to be present. Certain sites or areas will be known to have a higher likelihood of this being the case. In certain circumstances, an Archaeological Assessment will be required.

4.2. Local and National Policy

- 4.2.1. NPPF paragraph 194 notes that where a site has the potential to include heritage assets with archaeological interest, a desk based assessment or field evaluation should be submitted. This will then feed into decision making in relation to the application (paragraphs 195 – 208).
- 4.2.2. [Planning Practice Guidance](#)³ notes a potential 3 stage process of initial assessment, desk based assessment and where necessary, a field evaluation. It suggests only around 3% of applications will be required to do any more than an initial assessment.
- 4.2.3. Local Plan Policy 35 notes the requirement to provide information on potential or known heritage assets, as well as recording information where harm is justified. Policy 39 covers development affecting archaeology.
- 4.2.4. Policy 5 of the Local Plan requires that development has regard to the specified developer requirements set out in Appendix 2 of the Local Plan. Appendix 2 notes for every allocated site the expected archaeological requirements. All new allocations were reviewed by the South Yorkshire Archaeology Service (SYAS) for potential archaeological impacts, which fed into the developer requirements for the respective sites.

4.3. Archaeological Assessments

- 4.3.1. Whether or not a site requires an archaeological assessment or not is a decision made by the [South Yorkshire Archaeology Service](#) (SYAS).
- 4.3.2. SYAS review applications in the Borough and stipulate the sites which will require an archaeological assessment, although in the case of allocated sites, these were reviewed with the findings and likely further action required recorded in the developer requirements (Local Plan Appendix 2). Applicants are encouraged to engage with SYAS at the early stages of site development.
- 4.3.3. SYAS follow a 3 stage process of assessment, evaluation and mitigation.
- 4.3.4. An assessment should establish the likely archaeological potential of a site, and be carried out by an archaeologist using a variety of archive sources to establish the site history and report on the outline results. If archaeological remains are possible on a site, a desk based assessment by a professional archaeologist will be required as a minimum.
- 4.3.5. To evaluate and clarify the nature and significance of any expected archaeological remains, a full field investigation may be required, which might include a geophysical survey or trial trenching (or a combination of both). Both assessment and evaluation stages will be required prior to a planning decision being made by the LPA.

³ Planning Practice Guidance, [Historic Environment](#), Paragraph: 041 Reference ID: 18a-041-20190723

- 4.3.6. Once it is known what remains are on a site, SYAS will advise on what happens next – which could include detailed excavation or a programme of drawn and photographic recording, which will be secured by planning condition.
- 4.3.7. Please note, if archaeological investigations are required on site then any works should be agreed with relevant planning officers (ecologists, tree officers etc.), depending on the possible impacts of the works.

5. Biodiversity and Ecological Networks

5.1. Introduction

- 5.1.1. The impact and contribution that development can have on biodiversity and ecological networks is an increasingly important consideration when delivering new development sites.
- 5.1.2. There is certain information that the Local Planning Authority will require in order to be able to assess the potential ecological impact of development, as set out below.
- 5.1.3. For guidance on how to demonstrate Biodiversity Net Gain (BNG) within planning applications, please refer to the Council's [Biodiversity Net Gain SPD](#).

5.2. Local and National Policy

- 5.2.1. NPPF paragraph 174 includes the requirement for planning policies and developments to contribute to and enhance the natural environment. This includes minimising impacts on and providing net gains for biodiversity, as well as establishing coherent ecological networks. Paragraph 179 requires plans to protect and enhance biodiversity by identifying, mapping and safeguarding local wildlife rich habitats and wider ecological networks, as well as promoting the conservation, restoration and enhancement of priority habitats, ecological networks and priority species.
- 5.2.2. Doncaster's Local Plan has three policies relating to biodiversity and ecological networks. Policy 29 requires development to protect, create, maintain and enhance the Borough's ecological network. Policy 30 protects biodiversity in general including designated sites, priority habitats, priority species, protected species and non-designated features of biodiversity interest. It also requires development to consider the mitigation hierarchy. Policy 31 identifies Local Wildlife Sites and affords the same protection to non-designated sites that can be shown to meet the selection guidelines for Local Sites.



5.3. The Role of a Preliminary Ecological Appraisal

- 5.3.1. Undertaking a Preliminary Ecological Appraisal (PEA) during the very initial stage of planning any development is a vital way to identify:
 - The likely ecological constraints associated with a project.
 - Mitigation measures that are likely to be required and how the mitigation hierarchy will need to influence designs.
 - Additional, more detailed surveys that will be required to inform an Ecological Impact Assessment (EcIA).
 - Possible opportunities to deliver ecological enhancements both on or off site.

- 5.3.2. Having the findings of a PEA available prior to any site designs being undertaken can help to identify potential constraints and allow these to be factored into designs. This avoids the significant expense of redoing design work when ecology surveys are commissioned at a later stage in the planning of a project.
- 5.3.3. The Chartered Institute of Ecological and Environmental Management have produced [Guidance for Preliminary Ecological Appraisals](#). A PEA will usually involve a walkover survey of the site and a desk study informed by a data search from the [Doncaster Biological Records Centre](#). The findings of a PEA can be recorded in a Preliminary Ecological Appraisal Report (PEAR) or they can be used to inform a more detailed Ecological Impact Assessment (EcIA).
- 5.3.4. Under the vast majority of circumstances, a PEAR is not sufficient for submission to support a planning application. They can however be provided at pre app stage to help inform pre application discussions with the Local Authority.

5.4. Submission of Ecological Impact Assessments

- 5.4.1. It is expected that an EcIA will be submitted to support the vast majority of planning applications. The Chartered Institute of Ecological and Environmental Management have produced [Guidance on Ecological Impact Assessments](#) and it is expected that reports follow this guidance, and that within the [British Standard 42020 Biodiversity Code of practice for planning and development](#).
- 5.4.2. An EcIA is a process that identifies, quantifies and evaluates the potential effects of development on habitats, species and ecosystems. This allows the planning authority to fully understand the ecological issues associated with a proposal and determine the suitability for granting consent. An EcIA will build on the information collected during a PEA but also include information from more detailed surveys of habitats and protected species, which have been identified as necessary. Any additional surveys, carried out to inform the EcIA, must also be submitted with the planning application. All submitted ecological survey reports must be up-to-date and be valid according to guidance set out by the Chartered Institute of Ecology and Environmental Managers (CIEEM) reports.
- 5.4.3. It is important to note that an EcIA is required in addition to any BNG Assessments and reports. The EcIA assess the ecological functionality of the site in relation to ecological receptors and pathways and the development proposed. A BNG assessment simply quantifies the impacts on habitats and does not consider their function or the impact of a development proposal on individual species.
- 5.4.4. [Appendix A](#) is adapted from a checklist for EcIA's produced by CIEEM and the Association of Local Government Ecologists. It is designed to ensure that sufficient information is provided within an EcIA to allow a local authority to determine the ecological impacts of a development proposal. Completing the table in [Appendix A](#) and submitting it as part of an application can help to demonstrate that the application complies with the relevant planning policy.
- 5.4.5. Finally, CIEEM guidance dictates that biological survey information collected through the planning application process should be provided to the [Local Record Centre](#) and is a requirement of protected species licensing.

5.5. Conservation Strategies

- 5.5.1. In preparing a planning application consideration should be given to the strategic conservation strategies (when published), specifically the:

- Local Nature Recovery Strategy;
- Protected Sites Strategies; and
- Species Conservation Strategies

5.5.2. Development should seek to demonstrate in its application how it will contribute positively towards the objectives set out in these strategies. Where possible these contributions should be quantified.

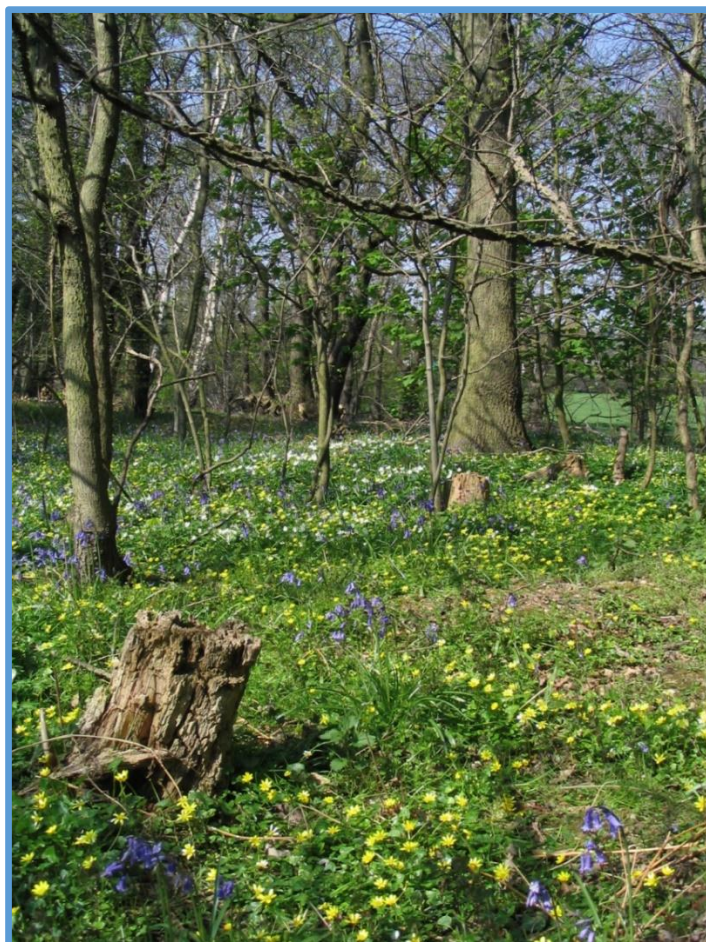
5.6. Protected Species

5.6.1. It is important to note that protected species surveys will not be conditioned, even at the outline stage of a planning application. The presence or absence of protected species is a material consideration in the Planning Authority determining planning permission and as such these surveys cannot be conditioned.

5.6.2. Protected species surveys must be carried out in line with the recommended professional guidance and be undertaken by a suitably qualified and experienced ecologist. Information on the necessary survey guidelines can be found within the Standing advice on protected species from [Natural England](#).

5.7. Invasive species

5.7.1. If invasive alien species are found on site then a management and removal strategy to ensure no offences are committed in respect of environmental protection legislation will be required as a condition of planning permission.



6. Contaminated Land

6.1. Introduction

- 6.1.1. All land has the potential to be affected by contaminants from former uses. This may be as a result of an activity on the land; migration from adjoining land; or material being brought onto the land for disposal or infilling. Derelict or disused 'brownfield land' is traditionally thought to be linked to industrial processes from the 19th and 20th centuries but they can also be as result of more recent demolition sites. Brownfield sites are more likely to be contaminated, although it will depend on the site. It is also possible for greenfield land to be contaminated by agricultural activities or naturally occurring pollution sources, although this is less likely.
- 6.1.2. The failure to re-develop brownfield land results in sustainable and suitable land being underutilised. This not only increases pressure on greenfield land - including countryside and Green Belt - but has the potential to leave land unsightly and potentially posing an environmental risk.
- 6.1.3. Contaminated land is a material consideration and must be considered for all applications. Potentially contaminated land needs to be risk assessed to identify any potential risks to human health or the wider environment, suitable remedial measures may be required to mitigate against such risks.
- 6.1.4. Information for developers when dealing with applications which are on land which is, or may be contaminated is set out below. For more detailed guidance please refer to [Doncaster contaminated land guidance](#).

6.2. Local and National Policy

- 6.2.1. NPPF paragraph 174 f) requires planning decisions to contribute to and enhance the natural environment by remediating and mitigating despoiled, degraded, derelict, contaminated and unstable land, where appropriate. Paragraph 183 requires that decisions should ensure that sites are suitable for their proposed use by taking account of ground conditions and risks from contamination. After remediation, paragraph 183 states that land should not be capable of being determined as contaminated land anymore, and furthermore that adequate site investigation information, prepared by a competent person is available to inform assessments.
- 6.2.2. Paragraph 184 is clear that where a site is affected by contamination, responsibility for securing a safe development rests with the developer and/or landowner.
- 6.2.3. [Planning Practice Guidance on Land affected by contamination](#) encourages early engagement with local planning and environmental health departments to clarify what assessment is needed, and elaborates on contamination risk assessments. This Section provided local clarification on this.
- 6.2.4. [Planning Practice Guidance](#) suggests an application could be refused on the grounds of contamination, but this should be the last course of action should a proposal not be made acceptable. Local planning authorities should work with landowners to find acceptable ways forward, including granting permission subject to conditions or obligations.
- 6.2.5. Local Plan policies 55 and 56 relate to Contamination and Unstable Land and require development on unstable, contaminated or potentially contaminated land to be risk assessed as part of the application. It also clarifies how proposals will be required to mitigate contamination or land stability; including demonstrating there is no significant harm; ensuring necessary remediation; demonstrating safe treatment of adverse ground conditions; or clearly demonstrating the land is suitable for the proposed use.

6.3. What is Considered Contaminated Land?

- 6.3.1. Contaminated land is any area of land which appears to the local authority to be in such condition, by reason of substances in, on or under it, that there is *possible* risk to human health or to the wider environment.
- 6.3.2. The role of the planning process is to ensure the land in question is made suitable for its new use, and that any risks to human health or the wider environment are removed or made as low as reasonably possible.
- 6.3.3. It is the developer's responsibility to ensure the land is safe and suitable for its proposed use; thus the developer is responsible for ensuring the issues of land contamination are appropriately considered, and that any required remediation or clean-up is undertaken.

6.4. Undertaking a Contaminated Land Risk Assessment

- 6.4.1. Where there is concern about potential contamination, either on or close to a proposed development site, or where the proposed development is for a sensitive end use (see paragraph 6.4.22 below), then a contaminated land risk assessment is required.
- 6.4.2. The Council will require the submission of comprehensive information about the land quality and its former use to be submitted alongside the planning application, which is especially important if the site has a former industrial or agricultural use or forms part of a major project. Reference should be made to the Government's publication [Contaminated Land Risk Management](#) (CLRM), which details how to risk assess contaminated land and provided live links to current UK guidance.
- 6.4.3. Contaminated land risk assessments should assess both the risk to human health, and the risk to controlled waters.

Assessing the Risk to Human Health

- 6.4.4. Estimating the risk should initially involve direct comparison between identified levels of contamination and appropriate Generic Assessment Criteria (GAC). GACs relating to human health represent conservative "acceptable" levels of contaminant in soil, at which any exposure should only pose negligible risk. There are several GAC's available; for example soil guideline values (SGVs). The GAC's are based on standard site users assumptions for certain land uses scenarios. The GAC used needs to be current and its application justified. If the identified levels of contamination exceed GAC, then a more detailed Site Specific Assessment Criteria (SSAC) will be required.
- 6.4.5. SSAC are determined using risk-modelling. The Contaminated Land Exposure Assessment (CLEA) model is a government-supported model that can be used to estimate the risks to human health. There are several other risk assessment models available. The SSAC needs to be in-line with UK policy, with all risk-modelling assumptions and uncertainties clearly referenced.

Assessing the Risk to Controlled Waters

- 6.4.6. As Doncaster's geology is essentially sandstone / limestone, there is controlled water and groundwater across most of the Borough with numerous drainage ditches. These drains are especially notable to the north-east of the Borough around the peat moors. The Borough is drained by 6 principal rivers: the Don, Went, Torne, Idle, Dearne and Ea Beck. Water has the potential to act as both a pathway for the transportation of contamination and also can be a receptor.

- 6.4.7. There are numerous licenced groundwater abstractions within Doncaster, all of which will have a default source protection zone (SPZ) of 50 metres around them. A SPZ may influence what development activities can occur in certain areas.⁴
- 6.4.8. Information required to assess the risks to controlled waters may include groundwater, surface water and soil leachate sampling and analysis. Identified levels should be compared to the most relevant water quality standards, for example environmental quality standards (EQS) or drinking water standards (DWS). If these levels are exceeded a more detailed controlled waters risk assessment maybe required.

Undertaking a Contaminated Land Risk Assessment

- 6.4.9. A contaminated land risk assessment follows a phased approach:

Phase 1 (Desktop Investigation)

- 6.4.10. As a minimum, a contamination assessment must include a Phase 1 desktop investigation. This consists of a desktop study, a site walk over and a conceptual site model and helps obtain a good understanding of the sites history, setting and contamination potential.
- 6.4.11. The Phase 1 investigation will identify all potential sources of contamination based on the lands former and current use; and previous pollution incidents in the vicinity. Understanding the lands geology, hydrology, previous site investigations and proposed end use will ensure the conceptual site model is comprehensive and robust. The conceptual site model should identify any pollution linkages and determine if there is a potential risk posed to future site users and the wider environment.
- 6.4.12. A conceptual site model could be a table or a diagram and should include:
- Sources of all potential contamination e.g. historical industrial activity, local mining activity, tanks or nearby landfill sites;
 - Pathways through which contaminants can travel e.g. direct contact, ground gas, vapour's, inhalation of dust;
 - Receptors that can be affected by the contamination e.g. future residents or controlled water;
 - To form a pollutant linkage the source, pathway and receptor must directly relate to each other and be present in respect of a specific identified area of land;
 - All identified pollutant linkages must be risk assessed to decide whether the risk poses is unacceptable. The conceptual site model should be reviewed and revised throughout the risk assessment process.
- 6.4.13. If no potential risks are identified for future site users and the wider environment, then no further contaminated land risk assessment is required. If the Phase 1 indicates there is potential risk posed to future site users and the wider environment, a Phase 2 investigation will be required.

⁴ Please refer to [Groundwater source protection zones \(SPZs\) - GOV.UK \(www.gov.uk\)](https://www.gov.uk/government/topics/groundwater-protection) and [Drinking Water Safeguard Zones \(Surface Water\) - data.gov.uk](https://data.gov.uk/dataset/drinking-water-safeguard-zones)

Phase 2 (Site Investigation)

- 6.4.14. If potential risks are identified, a Phase 2 site investigation is required. This comprises of a site investigation, further detailed risk assessment and a review of the sites conceptual model to determine if any of the potential risks (identified by Phase 1) are unacceptable risks to future site users and the wider environment.
- 6.4.15. A Phase 2 site investigation will use chemical analysis of soil, water and ground gases to try and quantify the potential contamination. The chemical analysis is risk assessed; initially against generic assessment criteria (GAC), if it is below GAC the risk posed is considered to be minimal/acceptable. If GAC is exceeded, then a site-specific assessment criteria (SSAC) is used, and if this is exceeded remediation is required. The sites conceptual model should be revised in line with the outcome of the GAC/SSAC risk assessment. If contamination is found to be of a level which may pose an unacceptable risk to future site users and the wider environment then Phase 3 remediation is required.

Phase 3 (Remediation)

- 6.4.16. If Phase 2 identifies unacceptable risks, then a remediation or 'clean-up' of the site will be required to ensure the finished development is suitable for use.
- 6.4.17. Remediation can take a number of forms, including removal of the source of contamination, or breaking the pathway by inserting a barrier. The remediation will be specific to each site but applicants should demonstrate the options that have been considered and show they have considered and justified the best way to remediate the site.
- 6.4.18. A Phase 3 remediation strategy will include reference to the sites conceptual model to ensure all pathways to unacceptable risk are broken. The strategy will carefully and exactly detail how remedial works will remove the risk of contamination, or make the risk as low as reasonably possible. The works will then be undertaken in line with the process set out in the strategy. Once remedial works are completed, a Phase 4 verification report is required.

Phase 4 (Verification Report)

- 6.4.19. The Phase 4 verification report is undertaken following remediation and will provide evidence that the remedial works have been carried out in an appropriate manner and the land is now safe and suitable for the proposed use, or identify where further remediation or management measures are necessary.
- 6.4.20. The report should detail whether contamination pathways have been successfully broken or otherwise controlled and show the site is suitable for its end use. All uncertainties and constraints need to fully documented.
- 6.4.21. This report should be submitted to the local planning authority for assessment.

Vulnerable End Uses

- 6.4.22. The following uses are examples of vulnerable end uses, and will require at least a Phase 1 desktop assessment (and further phases depending on the outcome). The following vulnerable uses will need to do further assessment for any unexpected contamination on the site (such as from unauthorised fly tipping or land infilling), addressing any issues which arise. They will also have to undertake samples of materials being brought on to the site (such as soil to raise a land level) to ensure the material is safe:
- Allotments;

- All residential development (houses, flats, residential care homes etc.);
- Children's play areas;
- Nurseries and crèches;
- Mixed use developments which include vulnerable end uses;
- Playing fields;
- Schools.

6.4.23. These end uses will follow the precautionary principle, whereby the potential presence of contaminants is assumed until and unless proven otherwise.

Exceptions

6.4.24. Certain forms of smaller development may instead only be required to carry out a basic screening assessment as a means of undertaking a basic contamination assessment. These include:

- Change of use of agricultural land (agricultural building to dwelling);
- Change of use where there is no demolition;
- Change of use where there are no gardens;
- Change of use from business to residential;
- Extensions;
- One dwelling in a garden; as long as there is no previous industrial use;
- Permitted Developments.

6.4.25. The [YALPAG Planning Guidance](#) includes the assessment form for small development applicants to undertake a basic contamination assessment in the preparation of their application.

Unexpected Site Findings

6.4.26. If when working on a site, ground works uncover something unexpected on site, due diligence should be shown, works should stop immediately to prevent further harm or spreading of material, and the local authority should be notified immediately.

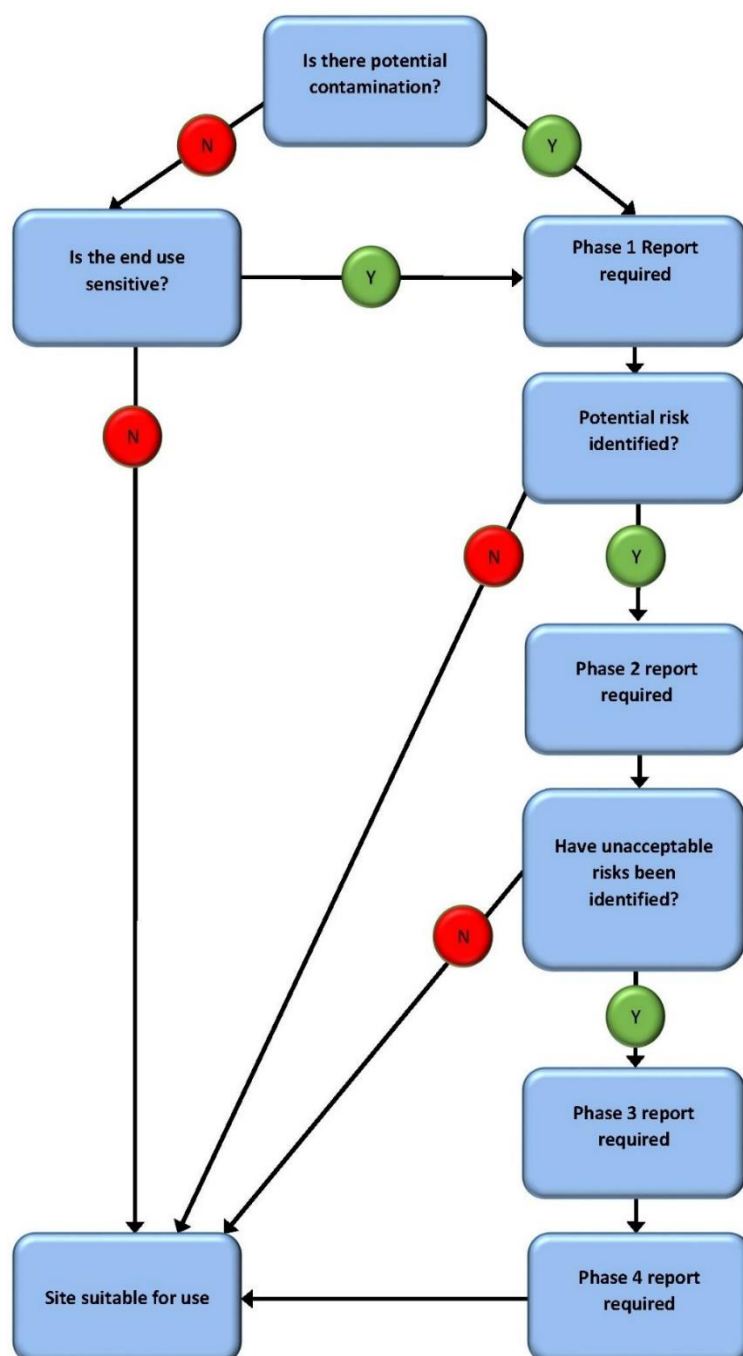
6.5. What Happens Next?

6.5.1. The information required should be submitted to the Local Authority as part of the planning application, or will be conditioned to be submitted and approved prior to the commencement of development on the site.

6.5.2. The information will be reviewed by a pollution control officer who will assess the information provided and any remediation proposed and check that it is acceptable.

- 6.5.3. It is generally accepted that contaminated land can be managed and remediation strategies and engineered solutions can be put in place in most cases to make the site safe for development. This is, however, at the developers' expense and more severe contamination can lead to more expensive solutions which may have the potential create viability issues. The primary concern is always the safety of users of the site and the wider environment.
- 6.5.4. In some cases, it may be that the remediation proposed is not sufficient, or the land cannot be suitably remediated to make it safe. In these cases, the pollution control officer would recommend the application is refused.
- 6.5.5. [Figure 1](#) summarises the process for assessing contaminated land.

Figure 1: Contaminated Land Assessment Process



7. Drainage and Flood Risk Management

7.1. Introduction

- 7.1.1. The Flood and Water Management Act (FWMA, 2010) identifies Doncaster Metropolitan Borough Council (DMBC) as the Lead Local Flood Authority (LLFA) for Doncaster. The LLFA leads in managing local flood risks, such as flooding from surface water, groundwater and ordinary (smaller) watercourses. This includes ensuring co-operation between the Risk Management Authorities in the area.
- 7.1.2. Under [The Town and Country Planning \(Development Management Procedure\) \(England\) Order 2015](#) LLFAs are required to undertake a statutory consultee role providing technical advice on surface water drainage to the Local Planning Authority for developments of 10 dwellings or more, or a site of 0.5ha or more.

7.2. Local and National Policy

- 7.2.1. NPPF paragraphs 159 – 169 cover planning and flood risk. Paragraph 167 notes that when determining applications, local planning authorities should ensure flood risk is not increased elsewhere. Where appropriate, applications should be supported by a site specific flood risk assessment. Paragraph 169 notes that major developments should incorporate sustainable drainage systems (SuDS).
- 7.2.2. [Planning Practice Guidance on flood risk and coastal change covers a range of areas related to flooding and planning.](#)
- 7.2.3. Local Plan Policy 56 relates to Drainage and requires development sites to incorporate satisfactory measures for dealing with their drainage impacts to ensure waste water and surface water run-off are managed appropriately and to reduce flood risk to existing communities. This policy sets out a range of requirements to ensure this. Local Plan Policy 57 covers flood risk management, including the undertaking of the sequential and exception test. For more information on this, please refer to the [Flood Risk SPD](#). The Council also has a Level 1 [Strategic Flood Risk Assessment \(SFRA\)](#).



7.3. Undertaking a Flood Risk Assessment

- 7.3.1. [Planning Practice Guidance](#) requires applicants to prepare site specific Flood Risk Assessments (FRA) to support applications. For further requirements of Flood Risk Management, such as Sequential and Exception tests, please refer to the [Flood Risk SPD](#).
- 7.3.2. Guidance on how to undertake a FRA is available [online](#). Additionally, there are local requirements for each application which are required by the LLFA as a minimum. Where insufficient information is provided to demonstrate the application is suitable in terms of flood risk and drainage, the LLFA may recommend the application is refused. Table 2 sets out what information and documentation will be required at each stage of the planning process.
- 7.3.3. Where a Drainage Masterplan (or site surface water drainage strategy) is required for larger sites this should also include:
- Details of the proposed phasing of the SuDS system;
 - Individual phase / catchment discharge rate and anticipated storage volumes; and
 - Definition of responsibilities for construction, maintenance and adoption of each element of the scheme.

Table 2: Documents Required at Each Stage of the Planning Process

Pre-app	Outline	Full	Reserved Matters	Discharge of Conditions	Documents Required
X	X	X			Site plan and location plan (with geographical features including watercourses),
X	X	X			Flood Risk Assessment/Statement
X	X	X			Drainage Strategy/Statement and sketch of layout plan.
	X				Preliminary layout drawings including site topographical survey.
	X				Preliminary 'outline' hydraulic calculations.
	X				Preliminary landscape proposals.
	X				Ground investigation report (infiltration).
	X	X			Evidence of third party agreement to discharge into their system (in principle/consent). Evidence of third party agreement to cross third party land (may require easement agreements for access and maintenance).
		X		X	Maintenance programme and ongoing maintenance responsibilities.

Pre-app	Outline	Full	Reserved Matters	Discharge of Conditions	Documents Required
		X	X		Detailed development layout.
		X	X	X	Detailed flood and drainage design drawings
		X	X	X	Full structural, hydraulic and ground investigation reports.
		X	X	X	Geotechnical factual and interpretational reports including infiltration results.
		X	X	X	Detailed landscaping design.
		X	X	X	Discharge agreements (temporary and permanent).
		X	X	X	Development management and construction phase plan.

- 7.3.4. At outline application stage, the applicant is not expected to submit detailed information, however the LLFA must be satisfied that sufficient information has been provided to confirm the site can be drained without increasing the flood risk to the site or elsewhere.

7.4. Surface Water Drainage Strategy

- 7.4.1. A Surface Water Drainage Strategy should be submitted to support all major planning applications. The strategy can either form part of the site's Flood Risk Assessment (FRA) or can be presented as a standalone document. The submitted document should set out the surface water drainage assessment and proposals for the site in accordance with the NPPF; Local Plan; [Non – Statutory Technical Standards for SuDS](#); and [Local Strategic Flood Risk Assessments and Surface Water Management Plans](#) (if available).
- 7.4.2. In accordance with [Building Regulations](#) requirements, applicants must follow the hierarchy for surface water discharge. Rainwater shall discharge to the following, listed in order of priority:
- 1) Catchment at source;
 - 2) Into the ground (infiltration)
 - 3) Attenuated discharge to a surface water body
 - 4) Discharge to a surface water sewer, highway drain or other drainage system;
 - 5) Discharge to a combined sewer.
- 7.4.3. Where it is not possible to achieve the first stage in the hierarchy (infiltration), then applicants must demonstrate in sequence why the subsequent discharge destination was selected:
- 1) **Capture at Source**
- 7.4.4. Rainfall should be managed in above – ground SuDS components as close to possible as where it falls to the ground. Guidance is provided within Chapter 24.6 of the [CIRIA SuDS Manual](#) (c753).

2) Into the Ground (Infiltration)

- 7.4.5. Infiltration structures (to ground) replicate natural greenfield conditions and benefit local groundwater recharge such as soakaways, infiltration basins, swales and permeable paving etc.
- 7.4.6. Infiltration rates for soakage structures are to be based on infiltration tests undertaken at the location and depth of the proposed structures. Percolation tests must be carried out in accordance with BRE Digest 365, or other recommended procedure required by Doncaster City Council LLFA.
- 7.4.7. Infiltration test results must be provided to support major outline or full planning applications. If infiltration is proposed and soil infiltration rate is less than 1×10^{-6} metres/second then infiltration should be discounted for these areas of the site and an alternative drainage strategy provided.
- 7.4.8. If infiltration is proposed, the drainage strategy should demonstrate:
- that the base of the any infiltration feature is at least 1m above the peak groundwater level;
 - the half drain times (in hours) of the infiltration feature are at least within 24 hours from the end of the 1 in 30 (3.3%) including Climate Change rainfall event;
 - the factor of safety used in calculations. This should be at a minimum 2 or best practice figure;
 - the minimum distance of the infiltration feature from buildings, permanent structures (including other soakaways) and highway is greater than 5m.
- 7.4.9. Intrusive ground investigations which conclusively show ground conditions are not suitable for infiltration are acceptable (e.g. due to clay, contamination, hazards etc.) to disprove its suitability. The LLFA will accept data from [soilscape](#) and the British Geological Survey [BGS](#) as a means to show infiltration is unsuitable. Photographic evidence of standing water on site and other evidence will also be considered.
- 7.4.10. Infiltration is not always appropriate, and the advice of stakeholders should be sought for developments in or close to source protection zones (SPZs), in areas with a known history of land contamination, or in areas with known high seasonal groundwater levels.

3) Attenuated Discharge to a Surface Water Body

- 7.4.11. In areas where ground conditions are not suitable to infiltrate, surface water can be discharged to suitable nearby waterbodies. The discharge location should aim to mirror the greenfield hydrological situation. The ability of existing watercourses to convey water (and to function as an effective exceedance flow route, where appropriate) will always need to be maintained.
- 7.4.12. Evidence should be provided as to the suitability of the waterbody to receive flows. These could include a topographical survey showing banks and bed levels which confirm a gravity connection is achievable. Proposed use of existing ponds or lakes must be accompanied by calculations showing that the waterbody has appropriate capacity to receive the incoming flows without increasing flood risk and that a suitable outfall or infiltration rate is present or proposed.

- 7.4.13. Details confirming water can freely flow within a receiving watercourse without obstruction or confirmation that the channel will be cleared prior to development should be provided.
- 7.4.14. The applicant should confirm that they understand that any connection or alterations made to an Ordinary Watercourse (including channel clearance) may require consent under Section 23 of the [Land Drainage Act](#) 1991 from the relevant management authority (LLFA or Internal Drainage Board (IDB) etc.). If the applicant is proposing to connect to a main river (Including culverted main rivers) then appropriate permissions must be sought from the Environment Agency.
- 7.4.15. Where appropriate third party permissions should be sought, in principle where required, and evidenced for connections crossing land outside the red line boundary of the application.
- 7.4.16. If watercourses are within or adjacent to the redline boundary of the site, future riparian access and maintenance should be considered within the design and detailed in the maintenance and management plan.
- 7.4.17. The applicant should demonstrate that any connection to culverted watercourses communicates with the wider network, the culvert will remain serviceable for the lifetime of the development and is currently in good serviceable condition.

4) Discharge to a Surface Water Sewer, Highway Drain or Other Drainage System

- 7.4.18. Where no suitable waterbody is present, attenuated discharge to a Water and Sewerage Company maintained surface water sewer is acceptable.
- 7.4.19. At the planning stage, confirmation from the sewerage undertaker should be provided confirming capacity is available within the existing system (or that the system can be upgraded) to receive flows from the site without increasing flood risk, and any maximum discharge rates. At outline application we would expect a developer enquiry application or similar to be provided and at discharge of conditions we would expect a signed 104 agreement to be provided.

5) Discharge to a Combined Sewer

- 7.4.20. The discharge of surface water to a combined sewer should be considered as a last resort. Foul and surface water flows within the site should remain separate prior to the final manhole leaving the site.
- 7.4.21. Confirmation from the sewerage undertaker should be provided confirming capacity is available within the existing system to receive flows from the site. At outline application we would expect a developer enquiry application or similar to be provided and at discharge of conditions we would expect a signed 104 agreement to be provided.

Alternative Option 1: Pumping Station

- 7.4.22. Pumping stations should only be used where there is no other practicable sustainable method of surface water drainage and an adequate exceedance flood route is provided in the event of failure of the pumping station. Where a developer proposes to construct a surface water pumping station, they should have early discussions with the LLFA.
- 7.4.23. Pumping stations should not be located where it might be susceptible to flooding at a frequency of more than 1:30 years. All electrical control equipment should be water resistant or sited above the 1:200 year flood level. Pumping stations should be located so that they are accessible, provide parking for maintenance and visible all times for use.

- 7.4.24. The pumping station should be provided with an ultrasonic level control system. Four level set points should be set in the wet well. There should be a pump unit sleep level, stop level, duty pump unit start level and a standby pump unit start level.

Alternative Option 2: Discharge to Highway Drainage or a Privately Owned Sewer

- 7.4.25. If no other option exists, then discharge of surface water to a private sewer or local authority maintained asset may be considered. However it is highly unlikely that approval to discharge into a highways drainage system will be given, where possible commuted sums would be required and CCTV surveys of the system to assess its condition.
- 7.4.26. Confirmation from the asset owner confirming capacity is available within the existing system to receive flows from the site should be provided.

Urban Creep

- 7.4.27. Urban creep is the conversion of permeable surfaces to impermeable over time e.g. surfacing of property frontages to provide additional parking spaces. It is anticipated that over the lifetime of the development urban creep can increase impermeable areas by as much as 10%. Therefore, the LLFA expects an additional 10% impermeable area to be included in the hydraulic calculations. Should this be omitted from the calculations, the LLFA may request the removal of the permitted development rights associated with the proposed dwellings.

7.5. Foul Drainage Strategy

- 7.5.1. Drainage strategies should also consider foul drainage and include the following design principles:

Waste Water Treatment Plants:

- Wastewater treatment systems shall be designed with sufficient capacity to ensure sufficient breakdown and settlement of solid matter. Details to show how the system has been sized need to be provided.
- Wastewater treatment plants should not be sites in areas where there is risk of flooding (fluvial/pluvial).
- Discharge from a wastewater treatment system is likely to require an Environmental Permit from the Environment Agency.
- Wastewater treatment plans should be sited at least 10m away from watercourses and any other building. This distance must be indicated on the drainage plan.

Septic Tanks:

- Septic tanks should be sited at least 7m from any habitable parts of buildings and downslope. This distance must be indicated on the drainage plan;
- Access arrangements need to be in place to ensure the septic tank can be emptied using a tanker, evidence of rights of access need to be provided as per Building Regulations Document H;
- Evidence that that septic tank has been designed with sufficient capacity must be provided. Details on how the system has been sized needs to be provided to the LLFA.

Septic tanks should have a capacity of at least 2,700ltrs (2.7m³) for 4 users. The size should increase by 180ltrs for each individual as per Building Regulations Document H;

- A sampling chamber must be provided on the inlet and outlet pipes of the septic tank, these chambers must be shown on the drainage plan.
- Discharge from a septic tank may require an Environmental Permit from the Environment Agency.

Cesspools:

- Evidence that the cesspool is not sited in an area where there is risk of flooding (fluvial/pluvial) as per Building Regulations Document H;
- Cesspools should be sited a minimum of 7m from any habitable parts of buildings and preferably downslope;
- Evidence that that cesspool has been designed with sufficient capacity in accordance with Building Regulations Document H;
- Access arrangements need to be in position to ensure the cesspool can be emptied using a tanker, evidence of rights of access need to be provided (see Building Regulations Document H).

Drainage Fields / Mounds:

- Drainage field or mounds serving wastewater treatment plants or septic tanks should be located 10m from any watercourse or permeable drain, 15m from a building and sufficiently far enough from any other drainage field or ground to ensure the overall soakage capacity of the ground is not exceeded;
- The applicant should contact the Environment Agency as a permit may be required in relation to the planning application, once obtained shall be submitted to the LLFA;
- Percolation tests must be performed in accordance with condition DN14 with filtration results submitted to determine the suitability of the site;
- Effluent disposal to a drainage soakaway, field/mound or wetland / reed bed shall be designed in accordance with Building Regulations. Details of the drainage system shall be submitted to and approved by the Local Planning Authority and be fully operational before the development is occupied.

Foul Soakaways:

- Before the development is commenced, permeability tests (in accordance with BRE365) shall be carried out to prove that ground conditions are suitable for a soakaway type septic tank/waste water treatment plant effluent disposal system (Vp values between 12 and 100). The test results shall be submitted to and approved by the Local Planning Authority prior to the commencement of the development.

- 7.5.2. It should be noted that the Environment Agency will not grant permits for a new application to discharge sewage effluent or contaminated surface water to a deep infiltration system, where the discharge is direct to groundwater.⁵

7.6. Sustainable Drainage Systems

- 7.6.1. Sustainable Drainage Systems (SuDS) slow the rate of surface water run – off and improve infiltration by mimicking the natural drainage in both rural and urban areas. This reduces the risk of ‘flash flooding’ which occurs when rainwater rapidly flows into public sewerage and drainage systems.
- 7.6.2. In December 2014, the then Department for Communities and Local Government (DCLG) set out changes to the planning system which would help increase the use of SuDS. As set out under the [Ministerial Statement](#) by the Secretary of State on 18/12/2014, Sustainable Drainage Systems are needed for all major planning applications, unless shown not to be appropriate.
- 7.6.3. SuDS features and the overall SuDS strategy should be designed in accordance with the [CIRIA SuDS Manual](#), which is recognised as best practice.
- 7.6.4. Applicants should also have regard to the Department for Environment, Food and Rural Affairs (DEFRA) [Non – statutory technical standards for sustainable drainage systems](#), and the [South Yorkshire Interim SuDS Guidance](#).
- 7.6.5. It is possible that SuDS can serve a dual use purpose as both a drainage solution and open space, as long as the Council are fully satisfied that the space can be used recreationally. For more information, please see Section 14.6.
- 7.6.6. Confirmation of a suitable treatment train should be provided before the run off reaches the soil (to reduce risk of groundwater contamination to an acceptable level).

7.7. Adoption of SuDS

- 7.7.1. Ofwat have introduced standard practice across England which all companies need to follow regarding the adoption of newly constructed sewers.
- 7.7.2. The ‘[Sewerage Sector Guidance Documentation](#)’ (SSG) has been published to meet the requirements of the code. As part of the SSG, the ‘[Design and Construction Guidance](#)’ which gives provision for Sewerage Undertakers to adopt SuDS facilities.
- 7.7.3. The Council’s preferred approach for the long-term management and maintenance of SuDS is for adoption by a statutory undertaker. We seeks to ensure that SuDS are designed to be capable of adoption by a statutory undertaker. Developers are encouraged to engage with statutory undertaker or once available a SuDS Approval Body at an early stage in designing a proposed development.
- 7.7.4. Water and sewerage companies may adopt SuDS. In order to meet the criteria for adoption, the SuDS must be constructed to an adoptable standard, taking into consideration the current [DEFRA Non-statutory Technical Standards for SuDS](#) and [CIRIA SuDS Manual](#).

⁵ Please see [Discharges to surface water and groundwater: environmental permits - GOV.UK \(www.gov.uk\)](#)

- 7.7.5. Applicants should engage with the LPA and LLFA and statutory undertaker early on to explore mechanisms for adoption. It is imperative that developers and their consultants give early consideration to the maintenance requirements for their SuDS scheme and potential routes for adoption.
- 7.7.6. A developer can also approach alternative companies to adopt their water and wastewater networks using a [New Appointment and Variation](#) (NAV) (where an independent water and wastewater company replaces a statutory undertaker as the water and or wastewater undertaker for a particular area. In these cases ongoing maintenance will fall to a nominated private company or individual, or to the NAV); or SuDS Approval Body (SAB) (where a local authority becomes responsible for approving, adopting and maintaining SuDS serving more than one property).
- 7.7.7. Arrangements for adoption by any public authority or statutory undertaker and any other arrangements to secure the operation of the system / scheme throughout the development's lifetime shall be supplied as part of the drainage management and maintenance plan. In addition, the arrangements shall have clarified the access that is required to each surface water management component for maintenance purposes.
- 7.7.8. Where a private maintenance arrangement is proposed and the development is unlikely to remain under single ownership or within a single curtilage over its lifetime, the satisfactory legal agreement will need to be provided for inspection and maintenance of the proposed surface water drainage scheme. The agreement is required before the first occupation of any dwelling or building on the site. Over the lifetime of the development an agreement must include the following:
- 1) A detailed operational maintenance plan;
 - 2) Physical access arrangements for maintenance, and establishment of legal rights of access in perpetuity, prior to the commencement of any phase of the development;
 - 3) A financial revenue plan setting out how funding for maintenance is to be raised over the lifetime of the development;
 - 4) A whole life cost analysis for capital maintenance over the lifetime of the development. Any values should be based upon the current HM Treasury Present Value (PV) Discount Rate. Assumptions about the expected useful life of materials should be included in any such analysis; and
 - 5) Details of financial surety to ensure long-term maintenance and capital maintenance costs of apparatus. It is for the developer to demonstrate that a suitable financial underwriting arrangement is in place.

7.8. Attenuation Tanks

- 7.8.1. The maintenance of conventional underground tanks and pipes can be expensive, especially where interceptors require cleaning and silt removing from components. These factors prevent compliance with the requirements of The Construction (Design and Management) Regulations 2015 (CDM 2015) where risks of maintenance should be designed out.
- 7.8.2. Above ground SuDS can be maintained and managed with less intervention. Above ground SuDS are also easier to monitor and to identify when occasional or remedial maintenance and is required. The provision of above ground SuDS therefore has longer terms benefits for ensuring that SuDS remain effective and financially sustainable in the long term.

- 7.8.3. The Council will not permit attenuation below any the adoptable highway or site parking areas. They will therefore likely need their own specified area, and often may be sited under a maintained grassland. For details of expectations in relation to attenuation tanks and open space, please see Section 14.6 below.
- 7.9.1. NPPF paragraph 169 c) requires maintenance arrangements to be put in place to ensure an acceptable standard of operation for the lifetime of the development.
- 7.9.2. To be effective long term, SuDS require maintenance and submission of a scheme to ensure this is delivered. The information required within a Surface Water Lifetime Management and Maintenance Plan are as follows:
- 1) A maintenance schedule, detailing regular, occasional and remedial maintenance activities including recommendations for inspection and monitoring. This should include recommended frequencies, advice on plant/ machinery required and an explanation of the objectives for the maintenance proposed and potential implications of not meeting them;
 - 2) Clarify whether it will be via a public body or statutory undertaker, or management and maintenance by a Management Company with defined management arrangements to include for adoption by an appropriate;
 - 3) Arrangements concerning appropriate funding mechanisms for the on-going maintenance of all elements of the sustainable drainage system (including mechanical components) and will include elements such as:
 - a. On-going inspections relating to performance and asset condition assessments;
 - b. Operation costs for regular maintenance, remedial works and irregular maintenance caused by less sustainable limited life assets or any other arrangements to secure the operation of the surface water drainage scheme throughout its lifetime; and
 - c. Means of access for maintenance and easements.
- 7.9.3. The maintenance schedule should be set out in a table that identifies the SuDS components, the activity including detail of the plant/machinery required, the frequency of inspection/monitoring and for maintenance, triggers for maintenance, and identification of those responsible for the inspection/monitoring/maintenance (adoption/management company/property owner).
- 7.9.4. More information on the operation and maintenance of SuDS is available in the [CIRIA SuDS Manual](#). This guidance should be taken into account when determining the schedule of works and the management and maintenance plan.
- 7.9.5. As aforementioned, the Council's preferred approach for the long-term management and maintenance of SuDS is for adoption by a Statutory Undertaker (see Section 7.7). Only SuDS serving and individual property and within the boundaries of that property should fall to the responsibility of the property owner.
- 7.9.6. Maintenance of SuDS components should not compromise the biodiversity or other amenity values of green and blue infrastructure. The method and timing of maintenance operations should take into account the impacts on biodiversity, for example avoidance of the nesting bird season and works to ponds are usually best carried out in late winter to avoid impacts on great

crested newts. A license may be required for some works where the habitats of protected species may be affected by maintenance work.

- 7.9.7. Details of SuDS components on the development site, both communal and private (property level) and the mechanism for management and maintenance should be included within the Home Information Pack.
- 7.9.8. Details of the funding mechanism are also required for management and maintenance. Details of who will be responsible for collecting management and maintenance contributions, who will pay management and maintenance contributions, how often they will be collected, indexation, the proportions to be used for maintenance and for administration will be required. The funding mechanism arrangements to ensure on-going maintenance of all elements of the sustainable drainage system (including mechanical components) must be submitted and will include elements such as:
- On-going inspections relating to performance and asset condition assessments;
 - Operation costs for regular maintenance, remedial works and irregular maintenance caused by less sustainable limited life assets or any other arrangements to secure the operation of the sustainable drainage system throughout its lifetime;
 - Means of access for maintenance and easements where applicable; and
 - A contact name and contact details of a designated officer who could respond to emergencies 24 hrs a day.
- 7.9.9. Please note, any proposed site layout should accommodate a 10m easement to any watercourse (open channel or modified) within or adjacent to the developable zone. Should the applicant robustly demonstrate that the watercourse can be accessed/maintained and the structural integrity of the watercourse banks can be safeguarded with a reduced easement, then the Lead Local Flood Authority would consider a departure from this standard. It should be noted that this agreement does not supersede any easement requirements of other Risk Management Authorities.

7.10. Watercourse, Culvert and Waterbody Easements

- 7.10.1. Many watercourses have been artificially modified by placing them in culverts, other buried components, ditches or manmade channels. This has affected the way in which water flows and in many cases speeds up the way in which it travels through a catchment which can exacerbate flooding downstream during and after heavy rain. The Council require a development to include measures to naturalise watercourses and improve their function.
- 7.10.2. Watercourses can be restored by opening up culverts, pipes and other buried watercourses, removing concrete and other artificial materials, re-wiggling to restore the natural course and adding vegetation. Buffers should be created either side of a watercourse to minimise pollution reaching the water. These actions will slow the flow of water but will also provide wildlife habitat contributing to biodiversity net gain. Naturalisation of watercourses will also enhance the visual amenity of a site, act as urban heat islands to absorb heat and airborne pollution.
- 7.10.3. The naturalisation of watercourses should also include storage to manage peak flows thereby contributing the requirement to reduce flood risk. This should be in the form of naturalised areas where peak flows and disperse to reduce the volume and rates of water flowing downstream.

- 7.10.4. Works to or adjacent to a watercourse may require separate consent from the Local Lead Flood Authority / Internal Drainage Board or a permit from the Environment Agency. Consent for piping an existing ditch or watercourse, in accordance with Section 23 of the Land Drainage Act 1991 must also be obtained.
- 7.10.5. Consent to culvert a watercourse must be applied for separately from the planning process, please e-mail Flooding@doncaster.gov.uk to enquire. More information is also available from '[Rivers by Design](#)'.



8. Education Contributions

8.1. Introduction

- 8.1.1. Where it is projected that there will be a shortfall of primary and / or secondary places at schools within the local area of a development, larger sites of family dwellings will be expected to provide a financial contribution to mitigate their anticipated impact on local education provision, which will be created by an influx of new families.

8.2. Local and National Policy

- 8.2.1. NPPF paragraphs 95 and 96 note it is important that there is a sufficient choice of school places available to meet the needs of new and existing communities. Local Planning Authorities should give great weight to the need to create, expand or alter schools through decisions on applications and work proactively to identify and resolve key planning issues before applications are submitted.
- 8.2.2. Policy 52 part B of the Local Plan notes that where housing development of more than 20 family dwellings will create or exacerbate a shortfall in the number of local school places, mitigation (an offsite contribution towards additional facilities at an existing school, or a new on site school) will be required.
- 8.2.3. Policy 5 of the Local Plan requires that development has regard to the specified developer requirements set out in Appendix 2 of the Local Plan. These include frequent reference to education contributions being required for allocated housing sites.

8.3. How is the Financial Contribution for Education Calculated?

- 8.3.1. The financial ask for education places is calculated in the following way:

Calculating the Number of Pupils

- 8.3.2. Where development is for 20+ family dwellings⁶, a ratio of 3 pupils per year group per 100 houses will be applied to calculate the expected number of school children a development will generate.
- 8.3.3. For primary schools, this would be 21 pupils per 100 dwellings (7 year groups x 3); and for secondary schools this would be 15 pupils per 100 dwellings (5 year groups x 3). Where there is both primary and secondary shortfalls locally, this would mean a total of 36 pupils per 100 dwellings therefore.
- 8.3.4. The assessment will be made based on projected shortfall at schools within a 2 mile radius for primary schools, and a 3 mile radius for secondary schools.⁷ Should there happen to be no schools within these radii then need will be assessed based on the nearest school(s).
- 8.3.5. Pupil projections are based on:
- Current school census information containing numbers on roll;
 - Inward and outward migration of pupils;

⁶ This excludes older person's accommodation, student accommodation, 1 bedroom and studio accommodation. This does include affordable housing.

⁷ This includes academy and free schools

- Additional place requirements from existing approved planning applications within the school catchment;
- School net capacity assessments;
- Schools cumulative admission numbers; and
- ONS birth data.

8.3.6. In line with the Department for Education (DfE) document [Basic needs allocation 2023-24 and 2024-25: Explanatory note on methodology](#) we uplift the pupil projection figure by 2% to provide an operating margin to support parental choice, pupil population movement and general manageability of the system.

Calculating the Cost

8.3.7. To calculate the cost of places, the [Local authority school places scorecards 2021](#) cost per place for primary and secondary schools is used. These are multiplied by the location factor for Doncaster (determined by DfE who use regional location factors published by the Building Costs Information Service (BICS)⁸. For permanent expansions Doncaster Council index the cost per place in line with the Building Cost Information Service (BCIS) All in Tender Price Index as per DfE guidance, acknowledging that the contribution will be used to fund school places at a point in the future when places are needed.

Table 3: Primary School Education Calculations

Type of Place	DfE National Cost		Yorkshire and Humber Location Factor		Doncaster Cost per Place
Permanent Expansions	£18,007	X	0.94	=	£16,926.18 + 5.44% inflation rate = £17,848
New Build	£21,559	X	0.94	=	£20,265.15 + 5.44% inflation rate = £21,388

Table 4: Secondary School Education Contributions

Type of Place	DfE National Cost		Yorkshire and Humber Location Factor		Doncaster Cost per Place
Permanent Expansions	£25,003	X	0.94	=	£23,503.19 + 5.44% inflation rate = £24,783
New Build	£26,105	X	0.94	=	£24,539.03 + 5.44% inflation rate = £25,875

8.4. Process

8.4.1. The above information provides developers with an indicative idea of the kind of contribution which may be sought but the final contribution will be subject to the capacity of local schools.

⁸ Please note, whilst this and all costs / rates mentioned in tables 3 and 4 is accurate at the time of writing, this will likely be subject to revisions in the future

- 8.4.2. When an application is submitted, the education team will be consulted and complete the assessment of local school projected capacity, to produce an education financial ask for the site.
- 8.4.3. This will then again be reviewed, and if necessary revised, as the application progresses towards determination to provide an up to date position and potentially a revised financial contribution (which could be more or less than originally stated).
- 8.4.4. Contributions will be secured via a planning condition and legal agreement.



9. Green Belt Compensatory Improvements

9.1. Introduction

- 9.1.1. The Local Plan released nine sites from the Green Belt (eight for housing and one (BES01) to provide for the business expansion of Polypipe in line with Local Plan Policy 73). The removal of these sites from the Green Belt means there is a requirement for the loss to be offset by improvements to the remaining Green Belt.
- 9.1.2. This requirement only applies to the nine sites removed from the Green Belt in the Local Plan.

9.2. Local and National Policy

- 9.2.1. Green Belt compensatory improvements are a requirement of national planning policy (NPPF paragraph 142) which requires that the loss of Green Belt land is “*offset through compensatory improvements to the environmental quality and accessibility of remaining Green Belt land.*” [Planning Practice Guidance](#) elaborates slightly on what this might encompass, including new or enhanced green infrastructure; woodland planting; landscape and visual enhancements; improvements to biodiversity, habitat connectivity and natural capital; new or enhanced walking and cycle routes; and improved access to recreation and playing field provision.
- 9.2.2. Policy 73 c) requires that compensatory improvements must be provided to the Green Belt in the proximity of BES01. Policy 5 of the Local Plan requires that development has regard to the specified developer requirements set out in Appendix 2 of the Local Plan. Appendix 2 requires that the following sites also require compensatory Green Belt improvements to be provided:
- BAW04: Westwood Road, Bawtry;
 - BH01: South of Doncaster Road, Harlington;
 - CD06: Between Sheffield Road and Old Road, Conisbrough;
 - CS02: West of Crabgate Lane, Skellow;
 - MUA46: Between Sheffield Road and Warmsworth Halt, Warmsworth, Main Urban Area;
 - MUA48: South of Alverley Lane, Balby, Main Urban Area;
 - SPR01: Between Cadeby Road and Melton Road, Sprotbrough;
 - TIC01: South of Sunderland Street, Tickhill.

9.3. How will Green Belt Compensatory Improvements be secured?

- 9.3.1. The Local Plan does not elaborate on where Green Belt compensatory improvements will be targeted for each site, what they might encompass or how they will be secured.
- 9.3.2. At application stage for the nine sites where Green Belt compensatory improvements are required, Doncaster Council will enter into negotiations with developers on a site by site basis to secure improvements to remaining Green Belt as close to the sites as possible.
- 9.3.3. To ensure compensatory improvements are made in close proximity to the area where land was removed from the Green Belt, officers will work to establish potential local receptor sites. Where potential opportunities for environmental or access enhancements are established but on third party land, or where officers are unable to identify local opportunities, they will enter into

discussions with external partners or landowners about potential projects and associated costings.

- 9.3.4. Once projects and costs established, the Council will enter into negotiations with the developer with a view to securing funding, via planning condition, towards the works. The Section 106 agreement will be clear this money is related to compensatory Green Belt improvements and will set out what the money received is for.
- 9.3.5. Where land is not under Council ownership and or / any works or projects are to be delivered by third parties then the Council will enter into a tripartite Section 106 agreement between the Council, applicants and the third party responsible for delivery.
- 9.3.6. As no calculation has been established through the Local Plan for assessing the level of financial contribution required towards Green Belt compensatory improvements, this will be negotiated on a site by site basis, being mindful of the size of the land removed from the Green Belt and the scale of what is proposed.
- 9.3.7. As the compensation is to offset “the impact of removing land from the Green Belt” (NPPF para. 142), which has already occurred upon adoption of the Local Plan, any financial contribution for Green Belt compensatory improvements will be expected prior to the commencement of development.
- 9.3.8. Alternatively, should the applicants wish to demonstrate they can quantifiably improve the environmental quality and / or accessibility of the remaining Green Belt within the vicinity of the site, they can submit a proposal to the Council for consideration as part of the planning application. This may be, for example, where the landowner owns another piece of land in the Green Belt they would be willing to use to provide Green Belt compensatory improvements on.

10. Housing Design Standards

10.1. Introduction

- 10.1.1. Ensuring the places we live are well designed is a key tenet of both local and national planning policy. It is imperative that new development is well designed to ensure good quality and lasting places for the people of Doncaster to live. Development proposals which fail to achieve local and national design aspirations will be refused.

10.2. Local and National Policy

- 10.2.1. Chapter 12 of the NPPF sets out how well-designed places can be achieved. Paragraph 130 sets out requirements for well-designed developments, and paragraph 134 is clear that *“Development that is not well designed should be refused, especially where it fails to reflect local design policies and government guidance on design”*.
- 10.2.2. Local Policies on design are found within Chapter 12 of the Local Plan. Policy 41 encourages new development to deliver imaginative, innovative design and move away from using standard off the shelf housing design. Development must be informed by, and respond to, its setting and context. Policy 42 sets out how well designed places can be achieved and sets out overarching design expectations for all new development, with Policy 44 setting out design expectations for new residential development. Policy 45 sets out housing design standards required on new development – specifically that all new housing should meet [Nationally Described Space Standards](#) (NDSS) standards; 65% of new homes on developments over 0.5ha or 10 dwellings should meet M4(2) standards; and 5% of new homes on such sites should meet M4(3) standards. Policy 48 relates to the landscaping of new developments and how high quality landscapes which enhance the development can be achieved.
- 10.2.3. [Planning Practice Guidance \(Design: Process and Tools\)](#) provides advice on the key points to take into account when designing new development, and there is also published guidance on [Nationally Described Space Standards](#), which all new development in Doncaster must be designed to meet, in accordance with Policy 45.
- 10.2.4. The [South Yorkshire Residential Design Guide](#) (SYRDG) (or successor guidance) provides detailed design guidance for new developments across South Yorkshire, and can be referred to for guidance on local design expectations over a breadth of topics. It is anticipated a Doncaster Design Code SPD will also be adopted in due course.

10.3. Information Required at Application Stage

- 10.3.1. In order to speed up the application process, developers are asked to provide clear information to allow officers to quickly establish whether the Nationally Described Space Standards have been met for the site and to demonstrate compliance.

Assessing Space Standards

- 10.3.2. To help assess whether the space standards stipulated in Policy 45 have been adhered to, applicants are required to provide:
- Housing floor plans drawn to scale, with the document size (e.g. 1/100 at A3) shown.
 - Overall gross internal floor areas for each house type marked on the floorplans in m2 with an indication of bedrooms and number of people these are intended to serve (with reference to NDSS) e.g. 4 bed 5 person home (4B5P).
 - The use of each room (bedroom, bathroom, study etc.) and its area in m2 clearly annotated.

- Room dimensions (width and length) clearly shown.

10.3.3. All storage (cupboards, built in wardrobes etc.) should be clearly annotated with their area in m². Total storage space includes cupboards, built in wardrobes, or part of a built in wardrobe. Refer to NDSS for allowances in built in storage wardrobes - paragraph 10 (h), which states: *“the built-in cupboard area in excess of 0.72m² in a double bedroom and 0.36m² in a single bedroom can count towards the overall built-in storage requirement.”* These need to be built in wardrobes and labelled as such on the floor plans if to be used to contribute to the overall storage requirement (i.e. form part of the permission).

Assessing Layouts and House Types

10.3.4. In order to assess the house types and the layout of proposed developments, applicants are required to provide (but are not limited to):

- A constraints plan showing any existing site constraints e.g. easements, utilities, trees, stand-off zones etc.;
- Good quality streetscene drawings;
- Scaled house type elevations and floorplans submitted as a pack (i.e. a single PDF) with house types in alphabetical order;
- A materials plan with the material palette shown visually on a site plan and colour coded layout with key – ideally the homes should be colour coded in a keyed colour to represent which facing material is proposed, with a symbol for roofing material to make it easier to assess;
- A boundary treatment plan, shown clearly in full colour upon the site plan, accompanied with a key and images demonstrating the proposed boundaries. Gates should also be clearly visible on plans for rear access areas;
- A schedule of accommodation on a site plan, with house type references and numbers shown, as well as which house types are proposed to meet NDSS, M4(2) or M4(3) standards (see Policy 45);
- All accessible and adaptable dwellings for M4(2) and M4(3) should clearly demonstrate that the dwelling is capable of meeting the functional and spatial provisions for an adaptable and accessible dwelling. Housetype floor plans need to clearly show the required access zones and all other provisions, and the furniture of the furniture schedule included as Appendix D as outlined within the ‘Approved Document M Volume 1: Dwellings’ All floor plans should also be provided to a scale of at least 1:100;
- Sections showing the relationship of proposed properties to existing properties adjacent to the site, where applicable, and level changes across the site;
- Technical sections (including, for example, measurements, dimensions and topography) showing the relationship of proposed properties to existing properties adjacent to the site, where applicable, and level changes across the site;
- A site levels plan showing existing and proposed site levels; and
- A plan showing garden sizes for each plot (or included as an annotation / schedule on the site plan).

- 10.3.5. When schemes are amended and resubmitted, applicants should provide an updated site plan with the revised revision number clearly shown.
- 10.3.6. The updated plan should show any amendments 'clouded' on plans, to allow officers to clearly see where changes have occurred.
- 10.3.7. An accompanying table which sets the amendments, and how these have addressed any points made by officers to previous layouts, should also be provided.
- 10.3.8. Providing the above information will aid officers and speed up the application process which is in the interests of all parties.

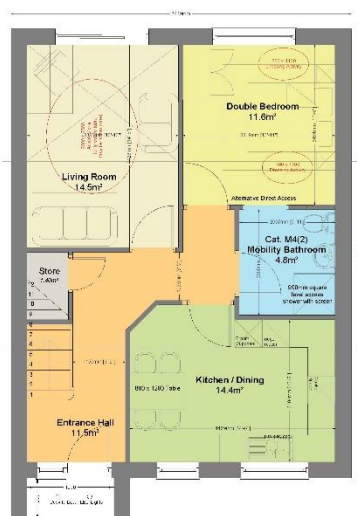
HOUSE TYPE E943 - Low Carbon Dormer Bungalow

2 bedroom 4 person semi or terrace GIA = 94.3m² (1015ft²)

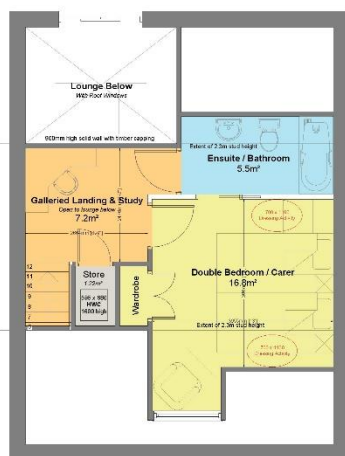


ADDITIONAL ENHANCEMENTS TO EXCEED BUILDING REGULATIONS 2020

- Ground Floor bathroom meets Approved Document PART M4(2) Category 2 for accessible and adaptable dwellings with level access shower
- 350mm thick External Wall makeup with full fill insulation
- First Floor Bathroom meets Approved Document PART M4(2) Category 2 for accessible and adaptable dwellings.
- All corridors at least 1050mm wide and internal doors permit accessible access
- Roof Integrated Photo Voltaic panels
- Electric Car charging point when parking space is adjacent to property
- Air Source Heat Pump for heating & hot water



Ground Floor - General Arrangement
GIFA to blockwork: 61.1m²



First Floor - General Arrangement
GIFA to blockwork: 33.20m²



SPATIAL STANDARDS

Housetype designed to meet the Gross Internal Floor Area prescribed by the Nationally Described Space Standards - March 2015.

Both bedrooms exceed the minimum floor area of 11.5m² and the minimum width dimensions

House provides 2.6m² of built in storage in accordance with the spatial standards

- Joinery Details - Anthracite Grey
- Roof Tiles - Marley Euro Edgeline in Smooth Grey
- Facing Material - Redbrick Hardwicker Wetbook Red Mixure
- PV Solar Array - Integrated Photo Voltaic panel



Doncaster Council

Property Services - Design

4191 FLOOR PLAN QUALITY BY TIGER DESIGN SOLUTIONS, 10A NORTON ROAD, DONCASTER, DN1 1UR, UK

Title: E943 HOUSE TYPE	
Drg No: PQ2807 /AD / PD01	

Scale: 1:100/1:50 at A2	Date: Feb 2021
Revision: -	Drawn By: MBC

11. Health Impact Assessments

11.1. Introduction

- 11.1.1. The link between planning and health has long been established. Almost every planning decision or policy has the potential to affect human health. Good planning and development have a positive effect on healthy lifestyles. This could be for example through ensuring there is access to pleasant and convenient green spaces or ensuring air quality levels remain at a safe level.
- 11.1.2. A Health Impact Assessment (HIA) is a tool that enables developers to judge the potential effects of a development on the health of a population. Completing a HIA on development proposals enables the developer to demonstrate their assessment of the health and wellbeing implications of their development. It should not only identify potential harms such as poor air quality and noise pollution but also highlight any positive health benefits it brings to an area, for example: good quality housing, social cohesion and access to public services.
- 11.1.3. HIAs have been recognised by national planning policy and guidance as an appropriate tool to identify the health impacts of spatial plans and development projects and to produce recommendations to maximise the benefits and mitigate risks or harm.
- 11.1.4. When based on evidence of local health needs and with the involvement of local public health teams, a HIA can help address health inequalities by protecting those who are vulnerable to the negative effects of development.
- 11.1.5. [Guidance](#) is available which provides developers with information about completing HIAs.

11.2. Local and National Policy

- 11.2.1. Health and enabling healthy communities is a key concept which runs through the NPPF, notably Chapter 8 (Promoting Healthy and Safe Communities).
- 11.2.2. Policy 50 of the Local Plan is related to promoting strong, vibrant and healthy communities and sets out how this will be achieved. Part F of this policy relates to undertaking Health Impact Assessments and responding to the findings.

11.3. Do I Need to Undertake a Health Impact Assessment?

- 11.3.1. Under Policy 50 of the Local Plan, developments will be assessed under the Health Impact Assessment Screening Tool to determine if a HIA is required.
- 11.3.2. Where development falls into areas of high deprivation, where major development is planned, or at officer discretion, there will be a necessity for the developer to complete a HIA. The thresholds can be found in screening tool ([002a HIA Screening Tool](#)).
- 11.3.3. This screening tool will inform developers whether or not a **Comprehensive HIA** is required
- 11.3.4. For those developments that don't meet the requirements of a Comprehensive HIA, specific questions may be put to the developer at Public Health's discretion. For clarity, this will be called a 'Rapid HIA'. The developer should respond to Public Health Officer questions directly and, unlike the Comprehensive HIA, there will be no requirement to complete a specific form.

11.4. Undertaking a Comprehensive HIA

- 11.4.1. If, upon completion of the screening tool assessment, the application qualifies for a Comprehensive HIA then the relevant form should be completed by the developer. There are

several different types of Comprehensive HIA form, depending on the type of development. Relevant forms to complete are available on the [Doncaster Council website](#). These include forms for the following types of development:

- Generic Mixed Use;
- Housing;
- Commercial;
- Educational settings; and
- HMOs.

11.4.2. Comprehensive HIAs consider the impacts of the development and what action can be taken to maximise positive and minimise or mitigate negative impacts.

11.5. What happens when a Health Impact Assessment is completed?

11.5.1. If a HIA is required it should be completed as part of the planning application submission by the developer. The application case officer will submit this to Public Health Officers for review. Public Health Officers will review the completed HIA and will respond to the Planning Officer, who will review and consider the HIA and its outcomes as part of their final decision. Please see [Appendix B](#) for an overview of the process.

11.5.2. Where unintended or negative impacts are identified developers must be able to demonstrate that they have considered these in relation to population health and wellbeing. Public Health would expect to see that developers have mitigated against unintended/negative impacts where possible and that these measures are clearly identified and explained in the HIA.

11.6. General Guidance and Outcomes

11.6.1. The Council would expect to see evidence that the development being assessed is contributing positively to the creation of a strong, healthy and just community. HIAs should be accessible documents for all, particularly members of the community, and should aid understanding of the development. As such, they should avoid technical language and be written in a clear and easy to understand manner.

11.6.2. HIAs provide the developer with a holistic view of the scheme including how it benefits the community as a whole. They allow communities to understand the combined impact of the scheme on the health and wellbeing of their local area. As such, they are an opportunity for developers to consult, and work closely with, the local community as part of the development process. It can be an opportunity to promote the scheme locally, including the highlighting of positive impacts of the development, and demonstrate how negative or unintended impacts will be mitigated against.

11.7. What Happens After Public Health Review the Health Impact Assessment?

11.7.1. On receipt of the Health Impact Assessment, Public Health Officers will review the content and will confirm to the Planning Officer if any further information is required. As the development progresses there may be times when Public Health Officers request further information via the Planning Officer.

11.7.2. If there are areas identified in the HIA that require further enhancement or necessary mitigation, Public Health may make recommendations on how these can be achieved to maximise the

potential positive impacts on health and wellbeing. These will be submitted to the Planning Officer, who will liaise with the developer and Public Health with the aim to reach agreement that they are acceptable in terms of health impacts.

- 11.7.3. The Planning Officer will review Public Health comments in conjunction with other consultation responses as part of their final decision.

12. Landscaping

12.1. Introduction

- 12.1.1. The landscaping of new development is a crucial component of overall site design. Designing well landscaped sites increases the overall attractiveness of a site and delivers places people want to live.

12.2. Local and National Policy

- 12.2.1. NPPF paragraph 130 requires that development is visually attractive, including the use of effective landscaping. Development should be sympathetic to local character and the surrounding environment and landscape setting. They should establish or maintain a strong sense of place to create distinctive places to live, including green spaces and public spaces. Paragraph 132 puts emphasis on design quality throughout the evolution of the site. Paragraph 134 states that development which is not well designed should be refused.
- 12.2.2. Local Plan Chapter 12 focuses on Design and the Built Environment. Local Plan Policy 48 covers the landscaping of new developments, setting out how development should protect and enhance existing landscape features. It sets out what a hard and soft landscaping scheme should include.
- 12.2.3. Policy 42 requires new development to be, amongst other things, landscaped to ensure the proposal is attractive and appropriate to the area. Similarly, Policy 44 notes one of the key design objectives of new development is that layout and street design results in attractive, landscaped public realm.

12.3. Landscaping New Development

- 12.3.1. The Local Plan requires new development to protect landscape character, protect and enhance existing landscape features, and provide a comprehensive hard and soft landscaping scheme.
- 12.3.2. Many of the most attractive and desirable parts of Doncaster are characterised by their green nature, including mature trees and established planting. Sometimes this is incorporated into the public realm and open spaces, but often it can be within private gardens.
- 12.3.3. In more recent years, the drive to deliver housing has often been at the expense of landscape quality. The Local Plan sets out how important good quality landscaping and design is to new developments, and this will be backed up by a Doncaster Design Code.
- 12.3.4. Local landscape character is made up of many elements, including landform, materials and street furniture (including paving, walling, fencing, lighting, seats, bins, signs, trees, hedgerows, planting (including species mix), buildings themselves, spatial characteristics and historic settlement and field patterns.
- 12.3.5. Applicants are required to demonstrate they have made reasonable effort to incorporate landscape features which contribute to local character sympathetically into development.
- 12.3.6. Examples of such features include:
- Established trees or groups of trees (including orchards and avenues);
 - Established hedgerows / Parliamentary Enclosure landscapes;
 - Prominent landscaped frontages or boundaries;

- Significant vistas;
- Water bodies; and
- Special brownfield habitat types.

12.3.7. Planning applications should be supported by a Landscape Masterplan, designed with the following in mind:

- **Soft landscape ratio:** developers should devote generous amounts of the site area to high quality soft landscape treatments (including to public realm, adoptable highway, public open space and private gardens);
- **Hard landscape materials:** robust, fit for purpose materials for highway surfacing and paving can help create an attractive public realm which increases the appeal of residential areas and minimises on-going maintenance requirements;
- **Screening:** soft landscape features such as trees, shrubs and hedgerows can be used to soften the impact of new buildings or to screen busy roads. Medium height hedge and tree planting will be required to plot frontages where there is frontage parking to balance the impact of parked cars and provide screening. New planting will be particularly important on development sites which abut the green belt or countryside, to soften the urban edge. Generally, a buffer zone will be expected which will be expected to be between 5m and 30m wide depending on the size of the development and other factors such as topography, visibility, sensitivity and the surrounding land use. This could be combined with bunds and acoustic fencing, where appropriate. Bunds should be sensitively graded to blend into the landscape. Consideration should be given to long-term maintenance when deciding on screening options.
- **Tree planting:** as per paragraph 12.38 of the Local Plan, the Council aims for a minimum of one tree per dwelling, including street trees to be designed in to the public realm. Planting can be especially advantageous on prominent frontages, in front of houses, and on the edge of green space and open countryside. Where sight lines are important, for example near pathways, low growing shrubs and trees with 2m clear stem heights should be used. Care should be taken to avoid species with pendant crowns near roads / junctions and suckering species along narrow streets.

13. Noise Impact Assessments

13.1. Introduction

- 13.1.1. Doncaster has a wide variety of noise sources including motorways, large scale business developments and railways. Noise therefore represents an important consideration in the Borough that should inform planning decisions.
- 13.1.2. At national level there is an absence of detailed technical guidance to help guide the relationship between development and noise. The Local Plan (Appendix 11 - Noise) provides locally specific guidance on the approach set out in Policy 54.

13.2. Local and National Policy

- 13.2.1. A key objective of Local Plan Policy 54 is to guide the relationship between noise sensitive development and noise sources to ensure that a good quality of life is maintained for current and future residents.
- 13.2.2. This Local Plan's Appendix 11 (Noise) identifies locally specific noise thresholds comprised of measureable value ranges through which noise impact from transport sources can be determined in order to support Policy 54. These are based on the noise exposure hierarchy set out in Planning Practice Guidance: Noise; and are discussed in detail in Appendix 11.
- 13.2.3. Local Plan Appendix 11 also provides guidance where proposals for noise sensitive development may be affected by industrial / commercial noise sources.
- 13.2.4. The NPPF sets out the Government's key planning objectives – recognising the need to minimise pollution as part of the environmental objective of achieving sustainable development. It requires the planning system to prevent new and existing development from contributing to, or being put at unacceptable risk from, or being adversely affected by, unacceptable levels of pollution (paragraph 174e). Paragraphs 185 provides more detail, outlining that local plan policies and development management decisions should aim to avoid noise giving rise to significant adverse impacts on health and quality of life as a result of new development. Where conflict does arise impact must, as far as possible, be mitigated against and reduced to a minimum.
- 13.2.5. The Government has since published [Planning Practice Guidance: Noise \(DCLG, 2013\)](#). This outlines that local authorities should take account of the acoustic environment in plan making and decision making and, in doing so, should consider whether or not:
 - a significant adverse effect is occurring or is likely to occur;
 - an adverse effect is occurring or likely to occur; and
 - a good standard of amenity can be achieved.
- 13.2.6. In line with the Explanatory Note of the Noise Policy Statement for England this would include identifying whether the overall effect of noise exposure is, or would be, above or below the Significant Observed Adverse Effect Level (SOAEL) and the Lowest Observed Adverse Effect Level for the given situation (LOAEL). The Planning Practice Guidance does not provide technical guidance to establish the levels at which the SOAEL and LOAEL occur. It does however identify that local planning authorities may produce local plan specific noise standards to apply to various forms of proposed development and locations in their area.

13.3. Undertaking a Noise Impact Assessment

- 13.3.1. As identified in Local Plan Policy 54, a Noise Impact Assessment will be required to support applications where noise sensitive uses are likely to be exposed to significant or unacceptable noise. Applicants should adhere to Local Plan Policy 54 and Annex 11 when preparing a Noise Impact Assessment.
- 13.3.2. The Noise Impact Assessment will be required to assess the impact of the proposal as a noise generator or receptor, as appropriate and will be required to demonstrate in full how the development will be designed, located and controlled to mitigate (as appropriate) the impact of noise on health and quality of life, neighbouring properties, and the surrounding area.
- 13.3.3. Unacceptable noise can be caused by a variety of sources, including transport, industrial and commercial sources. Each can require different types of assessment against a range of criteria and standards, and it is essential that the scope of the assessment, what criteria are to be considered and what noise standards are acceptable is agreed with the Environmental Health Practitioner prior to any assessment starting. The assessment must be undertaken by someone who is competent in the field of acoustics to carry out the necessary monitoring, and make an assessment and recommendations.
- 13.3.4. For some potential noise sources, the proximity of conflicting land uses and type of noise has potential to cause significant problems unless carefully addressed. This is of particular concern in the City Centre, where entertainment venues and licensed premises can be very close to proposed residential accommodation. People noise and the low frequency noise generated by entertainment at these premises means that the existing established noise criteria in Appendix 11 of the Local Plan are not appropriate for evaluation of the impact of these noise sources. What is described as “bass noise” is difficult to insulate against and the impulsive and fluctuating character of low frequency music noise is particularly disturbing to residents.
- 13.3.5. In these situations, specialist advice must be sought in order that adequate protection internally is afforded to residents. This should take into account additional factors as well as the overall noise level and should include consideration of the 63 Hz and 125 Hz octave band noise levels as part of the assessment and design criteria to be agreed.
- 13.3.6. It is also essential that the developer ensures that any noise mitigation measures that require the building envelope to be “noise tight” also take account of the need to ensure adequate ability to cool and ventilate the living space, particularly in respect of weather extremes that are becoming more common.
- 13.3.7. If it cannot be demonstrated that appropriate mitigation will be provided to prevent significant or unacceptable noise impacts to an acceptable level, or it is not practicable to achieve these, then the proposal will be refused.

14. Public Open Space

14.1. Introduction

- 14.1.1. Public Open Space (POS) should be one of the key considerations when designing new housing sites, and public open spaces should be properly considered and planned for early in design and layout development. Having access to high quality open spaces is crucial for physical and mental wellbeing, as well as delivering opportunities for nature. What can be delivered in terms of open space depends on the size of the site, what development is proposed on it, and where it is located within the Borough. Too often, open spaces are an afterthought in the design process of sites, with leftover or undevelopable spaces frequently proposed as open space, when it should be better designed and considered from the outset of the design process.

14.2. Local and National Policy

- 14.2.1. NPPF paragraph 93a says policies and decisions should plan positively for the provision and use of open spaces. Paragraph 98 notes the importance of open spaces and the benefits that open space can bring to communities. It also establishes that assessments should be used to establish what provision is required. Paragraph 99 notes that open spaces should not be built on unless one of three tests are met.
- 14.2.2. Local Plan Policy 26 states the Council will protect, maintain, enhance and where possible extend or create Doncaster's green infrastructure, including open spaces. Policy 27 protects both allocated and non-allocated open spaces from development except in certain circumstances. Policy 28 sets out the open space expectations for new developments, including when on-site open space should be delivered, and when off-site contributions will be sought. In both cases this is between 10% and 15% of either on-site space or an off-site contribution based on the market value of the development.
- 14.2.3. Policy 5 of the Local Plan requires that development has regard to the specified developer requirements set out in Appendix 2 of the Local Plan – which includes the open space requirements for all new sites allocated in the Local Plan.

14.3. Calculating the Amount of Open Space Required

- 14.3.1. Failing to deliver adequate amounts of on-site POS is both detrimental to the residents of the new site and puts increasing pressure on existing local open spaces.
- 14.3.2. Whether 10% or 15% of the site is delivered as open space, or whether a commuted sum of 10% or 15% of the market land value of the development site (as defined by the sites red line boundary) is provided, the process for calculating the percentage is the same.
- 14.3.3. To calculate whether the amount required is 10% or 15%, the open space policy officer will consult the Council's [Green Space Audit](#). The Green Space Audit breaks the Borough down into smaller component parts known as '[Community Profile Areas](#)', which have all been assessed to establish whether they are deficient in open space or not, based on five typologies (the five types of open space measured in Doncaster are formal, informal, public parks, allotments and woodlands / conservation areas).
- 14.3.4. The open space policy officer will identify on the [green space map](#) (the Council's map of green space within the city) which community profile area the application site falls into. Where the site is in an area which is deficient in three or more of the five open space typologies, the requirement will be 15% on-site open space or 15% commuted sum; where the area is deficient in two or less open space typologies, the requirement will be 10% on-site open space or off-site contribution.

- 14.3.5. This is because a higher local deficiency in local open space would mean greater pressure would be put on these already over-subscribed spaces close to the new development by new population using it; so the new development should seek to deliver more open space (or contribute more towards local provision) to meet the needs of the residents of the site and to help ease demand on existing open spaces.
- 14.3.6. It is not the intention of Policy 28 that 10% alone is sufficient open space, unless the site is in an area with lower open space deficiency; nor is it intended that 10% onsite could be delivered with a 5% offsite contribution to make good the shortfall of on-site open space in areas of higher deficiency.
- 14.3.7. In certain circumstances, where on-site open space is required, and the open space proposed is of exceptional quality⁹ but falls slightly short of the policy ask, the open space officer may agree to the shortfall being made up via a commuted sum to improve another local open space – but such decisions are made on a site by site basis. For example, should 13% on-site open space be proposed to be delivered when 15% is expected, but the space proposed is of exceptional quality, then a 2% off-site contribution may be deemed to be acceptable.
- 14.3.8. When determining receptor sites for any off-site contribution secured, open spaces within a 1km radius of the site will be provided to the case officer, unless there is obvious physical separation or severance (i.e. a railway line or river which cannot easily be crossed). The case officer will liaise with ward members for the area of the application site, neighbourhood managers, the Council's open space officer and Town or Parish Councils where appropriate as to which of the identified sites any financial contributions secured should be directed to and for what reasons (i.e. play area improvement, sport provision enhancement etc.). The case officer must be satisfied projects identified meet the CIL regulations and are an appropriate open space use for money secured to be directed towards.
- 14.3.9. The exception to this would be where an open space contribution has been deemed acceptable as the site is adjacent to a large open space (as per Policy 28 part B), in which case the financial contribution would specifically be directed towards improving that site. Off-site open space contributions will be secured for specific projects via a condition and legal agreement.

14.4. What Counts as On-site Open Space?

- 14.4.1. Policy 28 and paragraph 10.22 of the Local Plan state that on larger sites open space may take a variety of forms, with children's play included in the first instance. However, on smaller sites the focus may wholly be on the provision of children's play space - in such circumstances, no matter what open space types the green space audit says the local area is deficient in, children's play is the most likely open space type to be deliverable within the space that will be provided, and the type of open space most likely to be used.
- 14.4.2. Open spaces can include a number of typologies, with the focus being on the usability of open spaces. As such, amenity or small landscaped areas, including peripheral linear areas which are left over from the design or development of a site, will not be counted towards the quantum of open space on a site. These may have visual benefit and are not unwelcomed for their amenity value, but they generally have no useable open space function. Narrow areas which may be linked to wider open spaces, but which taper off to dead ends, are also not deemed to

⁹ Expectations for open space design will be set out in the Doncaster Design Code. Where open space design exceeds the standards set out in this document, it may be deemed to be 'exceptional'

be open space, nor are nooks and small awkward shaped areas which are generally unusable, hidden, and risk being sources of antisocial behaviour. For drainage solutions and POS, please see Section 14.6.

14.4.3. For open spaces (where these are for play and general recreation such as grassland) to be deemed as open space, they should be:

- Accessible:
 - Open to the public.
 - Have clear ingress and egress, distinguishable as open space which is there to be accessed and used by the public recreationally.
- Generally flat or a suitable topography for the proposed use.
- Mindful of the shape of the space in relation to its use. Recreational / play spaces, should avoid awkward shapes and be of a shape and size which can be used meaningfully for recreation – no ‘nooks’, no tapered and / or linear elements, and generally regular shapes which has sufficient room to run around and engage in play such as informal kickabouts etc.
- Suitably surfaced (hardwearing maintained grass for recreational areas, or suitable play equipment surfaces).
- Dry, not boggy or marshy, no standing water unless a periodical function of SuDS (see Section 14.6).
- Well overlooked by adjacent properties for natural surveillance.

14.4.4. Developers are asked to provide clear plans showing where all the land they consider to count as open space on sites is, the dimensions and amounts (in both hectares and percentages of the area of the site), and clearly state how much of the site this constitutes in total. Where there are different types of open spaces provided, developers should clearly differentiate these on plans and provide details of the size of each space and what its open space function is, as well as details of the overall amount of open space. SuDS basins and attenuation tanks should also clearly be marked if developers feel these can justifiably constitute POS in line with Section 14.6.

14.5. Delivering Quality On-site Play Space

14.5.1. Paragraph 10.28 of the Local Plan states that *“Within new developments open space provision should be an integral part of the planning application”*. Too often open spaces are an afterthought, which includes using awkward areas which otherwise cannot be developed, or trying to dual use open space and drainage solutions. This can lead to poor open space design and underused spaces. Open space should be an integral part of the site design and properly planned from the outset.

14.5.2. Traditional ‘kit, fence, carpet’ play areas with common play equipment have their merit, especially when well designed and featuring good quality equipment, but the focus has too frequently been on numbers and delivering the minimum amount of equipment in the minimum space prescribed for the type of play area (LAP, LEAP, NEAP), rather than delivering good quality, interesting and varied play spaces.

- 14.5.3. Developers are asked to think less rigidly and more creatively about the types of play space they deliver on sites in Doncaster. Traditional forms of good quality equipment should be provided alongside interesting on-site features which encourage more imaginative and creative play.
- 14.5.4. This might include naturalistic features, undulating land, places to hide, features to climb on, cross, crawl under and so on, and space to run around. Equipment should be seen as part of a wider creative play space, and integrated into this rather than being the sole part of a play space. Equipment does not always need to be confined to a set area or necessarily contained by a fence, where it is safe to do so.
- 14.5.5. Play features can provide for as much risk and challenge as is appropriate to the intended users, without putting them in danger of serious harm. Equipment should be suitably challenging and varied. 'Do-minimum' or 'tick box' approaches to delivering play equipment, with basic equipment or the cheapest options provided, will be resisted and, where this is proposed, developers will be asked to replace equipment with more challenging and varied pieces, or to redesign the space.
- 14.5.6. Open spaces should be located in the most convenient location for the majority of the residents on a new site. Generally this will mean centrally if possible, as opposed to being on the periphery of a site or in corners which otherwise cannot be used. On larger sites, a large open space with smaller 'satellite' pocket parks spread around the site is generally a sensible solution.
- 14.5.7. Areas should preferably not have substations, pumping stations or site infrastructure situated on them, as these dilute the quality, usability and visual quality of spaces. Where these are absolutely necessary they should be designed to be safe, screened and have minimal impact on the open space.
- 14.5.8. Spaces should be designed to be well overlooked and safe, with adjacent houses overlooking for natural surveillance. Developers should have regard to the buffer requirements to adjacent dwellings as set out in Table 13 of the Local Plan (page 107).

14.6. Open Space and drainage solutions

- 14.6.1. Increasingly, SuDS ponds and underground drainage attenuation tanks are becoming more prevalent on sites. These are often necessary parts of drainage solutions and infrastructure, but create a challenge for developers as they decrease the developable area of a site.
- 14.6.2. These spaces are frequently labelled on plans as open spaces and proposed to be used to count towards the on-site quantum of open space, rather than the two being separate.
- 14.6.3. This can be problematic. SuDS may often not be useable as an open space, where people cannot access and use them safely, and, if they are, may include inhibiting features which prevent them being used in a meaningful recreational way. For portions of the year they may be wet and inaccessible. Likewise, for access or structural purposes, some attenuation tanks may not allow anything to be placed on top of them, including play equipment which can limit their usability. In both cases this can consequentially lessen the amount of useable open space or create poor design solutions such as equipment being squeezed or moved around to accommodate drainage solutions.
- 14.6.4. On larger sites, where attenuation tanks with maintained but unequipped grassland above them are proposed, the Council is generally amenable to such spaces being used as, and counting towards on-site open space, as long as they form part of a wider open space solution where

play equipment can still be delivered and designed as expected in the wider open space as per Section 14.5. The tank area would effectively form the recreational 'kickabout' area of the larger open space solution.

- 14.6.5. On such sites, where tanks / grassland are proposed as the sole open space solution this will be resisted unless it can be demonstrated equipment can be suitably accommodated in line with the specifications set out in section 14.5. It is not an acceptable solution to force equipment around the periphery of a tank area as this will result in poor play design. Where tank / grass areas are part of an overall solution, but situated separately to a play area, the acceptability of these as open space will depend on both their size (and subsequent usability), and the overall on-site offer.
- 14.6.6. With regards to SuDS basins, their acceptability as open space will generally depend on their function, the wider site's open space provision, and their design. On larger sites it will be easier to incorporate and integrate SuDS into the overall open space solution. This is because there will be more room for multifunctional spaces including play, sports and walking routes which can incorporate SuDS as a feature of a wider open space offer. On smaller sites, there will be less opportunity to deliver a multi-functional open space solution. Local Plan paragraph 10.22 notes that on smaller sites, children's play space will be the priority. Therefore, offering SuDS as the whole open space solution will generally be unacceptable unless it can be conclusively shown the space will be good quality, useable and highly unlikely to be affected by being wet.
- 14.6.7. Offering SuDS as part of onsite open space alongside space for children's play will again depend on the functionality of the SuDS and the quality of the wider offer. It is not acceptable to offer the minimum size standards for a LAP, LEAP or NEAP and make good the remainder of the required 10 – 15% onsite open space with a SuDS basin unless that SuDS basin can be shown to be good quality useable open space suitable for play and recreation.
- 14.6.8. The [CIRIA SuDS manual](#)¹⁰ states that:
- “where SuDS are proposed in public open space, it will be necessary to ensure the design meets the requirements of the local authority...as part of the design of detention basins or exceedance storage areas that have an amenity use, a decision will need to be made regarding optimum maintenance for surface water management versus the designated amenity use.”
- 14.6.9. In Doncaster, for SuDS to be accepted as open space and count towards the on-site open space requirement, the proposals must be able to demonstrate that they accord with the principles set out in paragraph 14.4.3 above. Additionally, in terms of their functionality, for SuDS to be considered as open space, they should have a flooding probability of no more than 1 in 100 years.

14.7. Open Space for Older Peoples Accommodation

- 14.7.1. Policy 28 part D requires retirement living schemes and / or aftercare facilities to provide good quality amenity space of 16m² per person.
- 14.7.2. It should be noted that the requirement is per person, not per dwelling or room. This may require an assumption to be made about the anticipated number of residents on a scheme where rooms provided can accommodate more than one person. Applicants will be expected to demonstrate how they have reasonably calculated the anticipated number of residents through

¹⁰ CIRIA SuDS Manual, 2015, pp. 109

the application and, once the Council agrees, ensure that 16m² of open space (communal gardens) per resident is provided.

14.7.3. The policy requires these spaces to be good quality. This is especially important as for many residents this may be the main or only opportunity to be outside of the facility.

14.7.4. Older resident needs vary from more general needs open space and these areas should be designed accordingly with spaces carefully tailored to the needs and requirements of elderly residents. Applicants should consider the following when designing communal open spaces for elderly care settings:

- **Visibility:** spaces should be extensions of internal communal spaces where possible.
- **Accessibility:** paths, edgings and the ground adjacent to them should be laid relatively level, with rises and falls only gradual to avoid trip hazards. Surfaces should be even and slip resistant. Paths should be designed with wheelchairs and other mobility aids in mind.
- **Routes:** walking routes should be carefully designed to take full advantage of garden features. They should include adequate seating for resting. Routes should be circulatory and avoid dead ends unless they end at a feature or “event”.
- **Sun and Shade:** the orientation of the garden should be carefully considered to ensure the garden receives adequate sunlight. Provision of shade can be designed into the spaces (planting or structures etc.).
- **Security:** spaces should be clearly secured and be for the use of residents of the scheme.
- **Features:** spaces should have interesting features for residents to engage with. These could appeal to different senses – visual, sound, smell and touch.
- **Participation:** consider opportunities for residents to engage in activities such as gardening or vegetable growing and make these inclusive and tailored to resident needs by using features such as raised beds.
- **Planting:** carefully design the planting in communal gardens to include sensory planting, colour and year round variety and interest.
- **Wildlife:** birds in particular make a welcome addition to communal gardens. Consider ways in which this can be encouraged – such as bird feeders or nest boxes. Habitats that encourage butterflies and other insects should be designed into the planting.
- **Lighting:** consider how the garden can be illuminated in the evenings to provide interest for residents beyond the likely hours of use.
- **Maintenance:** gardens will need to be maintained and external taps will likely be required. A management and maintenance plan should be provided.¹¹

¹¹ For further guidance, please see Housing LIN, *Design Principles for Extra Care Housing (3rd edition)*, June 2020 and *Landscape Design for Dementia Care*, July 2013

15. Public Rights of Way

15.1. Introduction

- 15.1.1. The effect of a development on a Public Right of Way (PROW) is a material planning consideration. The granting of planning permission in itself does not permit the right to divert, extinguish, alter the status of, or build over a public right of way - not even temporarily. Addressing issues concerning public rights of way should occur at an early stage of the planning process.
- 15.1.2. There are 4 categories of PROWs. All can way run through residential, commercial, agricultural (including equine and horticultural), leisure and recreation developments as well as minerals and waste developments.
- Footpath;
 - Bridleway;
 - Restricted byway; and
 - Byways open to all traffic.
- 15.1.3. A public right of way will be affected by development where it:
- crosses or is adjacent to an application site;
 - is to be used for site access (whether temporary or permanent);
 - will be crossed by an access road (whether temporary or permanent).
- 15.1.4. The Definitive Map is the legal record of PROW. At present this is not digitised but scanned versions of the paper map are available to the public to view on computers in the Council's Civic Office reception.

15.2. Local and National Policy

- 15.2.1. NPPF paragraph 92 states that planning decisions should achieve healthy, inclusive and safe places which promote social interaction, are safe and accessible and enable healthy lifestyles. NPPF paragraph 93 is clear that planning decisions should provide the social, recreational and cultural facilities the community needs, including planning positively for shared spaces. Paragraph 98 states that access to a network of high quality open spaces and opportunities for sport and physical activity is important for the health and wellbeing of communities.
- 15.2.2. Paragraph 104 is clear that transport issues should be considered from the earliest stages of development proposals so that opportunities to promote walking, cycling and public transport are identified and pursued. Finally, paragraph 112 is clear that development should give priority first to pedestrian and cycle movements, both within the scheme and in neighbouring areas.
- 15.2.3. NPPF paragraph 100 states that "Planning policies and decisions should protect and enhance public rights of way and access, including taking opportunities to provide better facilities for users, for example by adding links to existing rights of way networks including National Trails."
- 15.2.4. The Doncaster Local Plan includes a series of policies (Policies 18, 19 and 20) covering the protection, improvement and safety of the rights of way network in the Borough.

15.3. How to Approach Public Rights of Way When Preparing a Planning Application

- 15.3.1. Where development will affect a PROW, early contact between the developer, the planning officer and the [PROW team](#) is essential to ensure that an acceptable scheme is produced.
- 15.3.2. Ideally, pre-applications should be used to discuss acceptable approaches, especially if a path needs to be diverted, so an acceptable scheme can be delivered when an application is formally submitted.
- 15.3.3. PROW affected by development should be retained and where possible this should be on the legally recorded alignment (as shown on the Definitive Map). This may not always be possible which means a diversion order will be required to legally move the path. Whether a path is to be retained on its existing alignment or diverted, schemes should be designed following the Access, Design and Layout principles outlined in Policy 19 of the Local Plan.
- 15.3.4. Before any development work starts on site it is important that all the public rights are accurately surveyed, particularly if the path is to be retained on its existing alignment and clearly marked out on the ground including the width. The PROW team can assist with this.
- 15.3.5. In summary, applications for sites which include PROW on them should provide as part of the application detailed plans which clearly show:
 - The current legal alignment of any public right of way through the development site.
 - How public rights of way will be accommodated through the site, the plans should include details on landscaping, surfacing materials, drainage and gradients.
 - If the path is to be diverted, plans should show how the alternative path through the final development will be routed, including details on landscaping, surfacing, drainage and gradients and also show how the path links into the surrounding path network.
 - How the routes will be dealt with during the construction of the development – i.e. routes for temporary diversions.

15.4. Public Path Orders

- 15.4.1. Where it is necessary to change the legal line of a public right of way through a development site a public path order is required under either s.247 or s.257 of the [Town and Country Planning Act, 1990](#). It is a criminal offence to obstruct the right of way until the Order has been confirmed and brought into effect. Until the highway authority is satisfied with the new route the original path must be retained.
- 15.4.2. Unauthorised obstructions or diversions may result in an injunction being served to stop the development and/or criminal proceedings brought against the offender. Local authorities have the power to reinstate paths even if this means pulling buildings down.
- 15.4.3. It should be noted that any necessary public path order is not guaranteed to succeed. Early liaison between the developer, planning and highway authority, local user groups, prescribed organisations and any affected individuals to produce an acceptable scheme will lessen the risk of objection. Any opposed order will be submitted to the Secretary of State to determine. The applicant may be required to present their own case at any public inquiry that is held.

- 15.4.4. A charge will be made to cover the costs incurred in making the Order. Costs include those incurred in site visits, liaison with applicants, consultation with prescribed organisations and utilities, legal costs, advertising and any other reasonable costs incurred in the administration of an application.
- 15.4.5. A Public Path Order can be made and advertised, but not confirmed, ahead of the granting of planning permission. This is separate to the planning application process. Applications can be made once a scheme has been agreed with the PROW team and once a planning reference has been issued. The Council will work with developers to divert public rights of way as quickly as is practicable to ensure minimal impact on the development whilst maintaining the integrity of the public right of way.

15.5. Temporary Traffic Regulation Orders

- 15.5.1. A Temporary Traffic Regulation Order may be necessary to legally close paths in order to safeguard the public and the workforce whilst the development is carried out. Such orders can restrict public access for a maximum of 6 months (unless the Secretary of State approves an extension). An application needs to be submitted to the Rights of Way Team no less than 6 weeks prior to the required closure period. At the end of the order the path must be re-opened for public use on its legal line and free from obstruction.

15.6. Least Restrictive Access

- 15.6.1. The principle of least restrictive access requires that all work carried out on the rights of way network, whether planned maintenance or specific improvements, meets the highest possible access standards. It is an approach that helps raise the overall access standard of a path and the whole network over time for as many users as possible.
- 15.6.2. Barriers are often seen as the first line of defence in preventing antisocial behaviour on new developments; however, many barriers are a limiting factor and prevent some legitimate users. Barriers will only be permitted where there is clear justification. Doncaster Council has adopted the British Standard for Gaps, Gates and Stiles (BS5709) as the design standard for barriers on the rights of way network; and all new structures which are to be authorised must follow that standard.
- 15.6.3. The status of the path, the location and knowing who is likely to use it are important considerations when deciding what surface to use. Different users have differing requirements, for example, wheeled users (cyclists, pushchairs, mobility scooters etc.) favour smooth, hard surfaces whereas horse riders prefer the opposite. Walkers using a path to get to work or school prefer sealed surfaces compared to recreational walkers who like something more natural. Surfacing solutions should therefore be path specific and agreed with the public rights of way team.
- 15.6.4. Gradients can affect users in different ways and also be a barrier to some users. As gradients increase they become progressively more dangerous and impassable to an increasing number of users. Whilst every effort should be made to lessen existing steep gradients this will not be possible in all locations. Improvements to the surface should not make any existing gradient steeper than it already is. Alternative routes through development sites should avoid gradients where possible.
- 15.6.5. Any path surfacing work should include drainage solutions where necessary. The aim should be to keep water away from the path – ideally by intercepting before it reaches the path and diverting it safely away using appropriate drains, etc. The type of drainage system used will depend on the location and topography. Any drains that are needed to run across the path should be covered and be flush with the surface to avoid any potential barriers to path users.

Excessively steep cambers or cross falls can present issues for many path users. Porous surface materials can be useful to help meet the requirements of sustainable drainage systems.

15.7. Unrecorded Paths – Identification and Process

- 15.7.1. The Definitive Map shows the recorded public rights of way. However, there are numerous unrecorded paths across the Borough which people are using on a regular basis and that provide useful links to the public rights of way network. Many of these paths may carry public rights. Unrecorded paths are:
- Routes claimed in the 1950s that were not recorded on the Draft, Provisional or first Definitive Map. This is particularly the case for the area covered by the former County Borough of Doncaster.
 - Claimed paths that have been received by the Council, either formally or informally, under section 53(5) Schedule 14 of the Wildlife and Countryside Act 1981.
 - Clear and obvious routes (desire lines) on the ground linking public places or existing highways.
- 15.7.2. Unrecorded paths should be taken into consideration at an early stage and where necessary incorporated into developments following Policy 19: Access, Design and Layout of Public Rights of Way of the Local Plan.
- 15.7.3. Unrecorded paths should be recorded on the appropriate legal record to give them protection in perpetuity and also formalise future maintenance responsibilities.
- 15.7.4. The Public Rights of Way Team can assist developers in identifying both recorded and unrecorded paths and offer advice on dealing with path across development sites.

16. Transport Assessments

16.1. Introduction

- 16.1.1. One of the matters which affects the public most directly when developments occur is their impact on the highway network. Without careful assessment of the impacts of new development and the correct mitigation measures being put in place, the ability of the highway network to cope with additional pressures can be stretched.

16.2. Local and National Policy

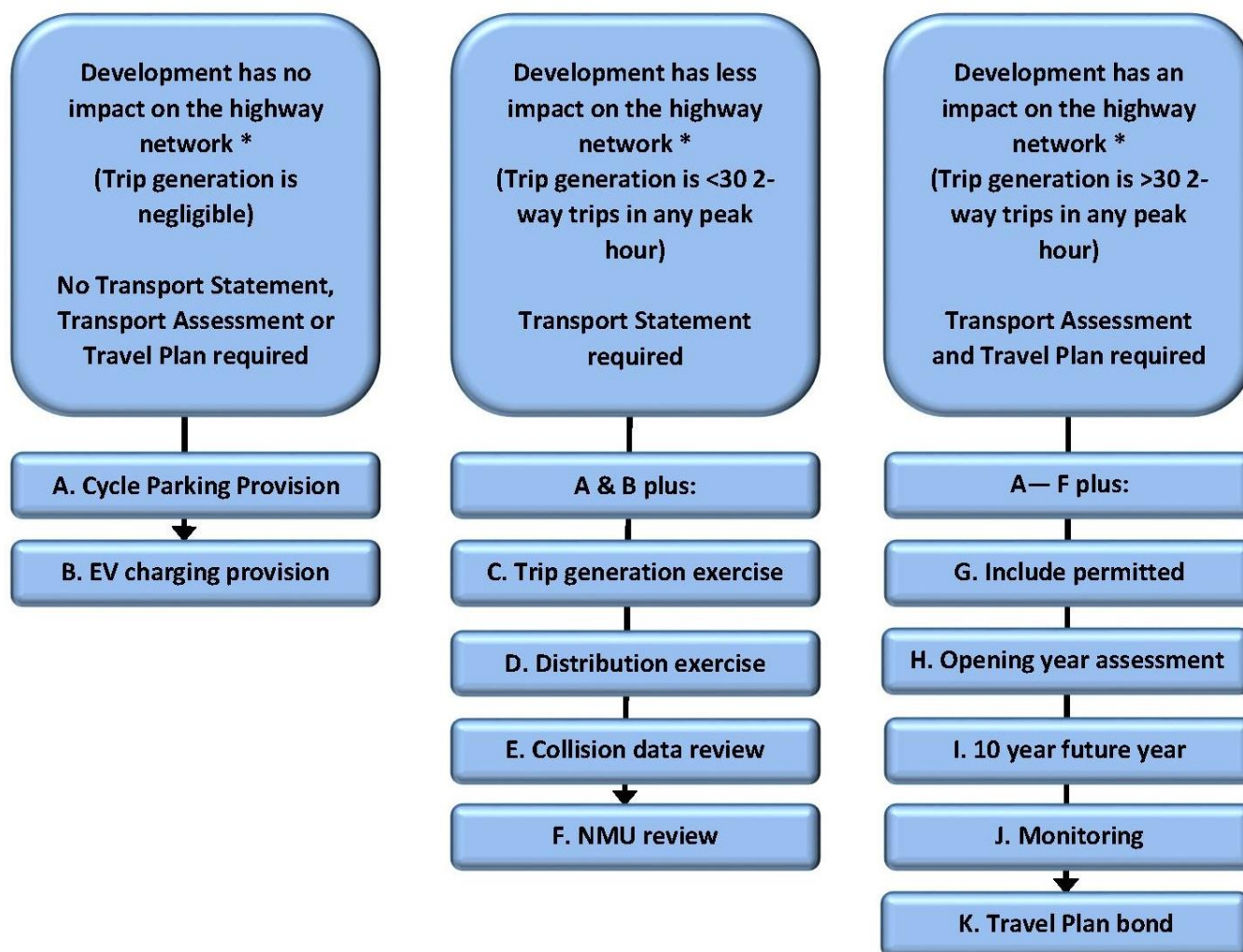
- 16.2.1. Local Plan Policy 13 part B) notes that new development will need to provide, as appropriate, Transport Statements, Transport Assessments and Travel Plans. Appendix 7 of the Local Plan sets out thresholds for these.
- 16.2.2. New development which is predicted to have an adverse impact on the highways network will be expected to contribute to capacity and mitigation measures. Proposals for new projects will be required to make a proportionate financial contribution.
- 16.2.3. NPPF paragraph 113 states that all development which will generate significant amounts of movement should be required to provide a travel plan and that the application should be supported by a transport statement or transport assessment so impacts can be assessed.

16.3. Assessing the impact of development on the highway network

- 16.3.1. **Figure 2** below gives an indicative summary of what information is expected to be provided to support development based on their size and therefore predicted impact on the highway network. It also indicates what is expected to be delivered as part of applications.
- 16.3.2. Developers will be expected to assess the predicted highways impact of their scheme on the highway network and propose mitigation accordingly. The Council's Highways and Transportation departments will review this information and may ask that further work is done if they believe the impacts may be greater than stated.
- 16.3.3. Where junction modelling, using industry standard software, is required and this identifies an impact considered unacceptable, then mitigation measures should be proposed, and subsequently modelled, to demonstrate nil detriment at the affected junction(s).



Figure 2: Undertaking a Transport Assessment



16.3.4. Once satisfied with the assessment undertaken, and the mitigation works proposed, it must be agreed how any works will be carried out. Potential schemes could be, either, funded by the developer, secured by a Section 106 agreement and completed by the Council (Local Highways Authority), or completed by the developer under a Section 278 agreement. In both cases, this would be secured via planning condition.

17. Trees and Hedgerows

17.1. Introduction

- 17.1.1. Existing trees and hedgerows are a material planning consideration. National policy requires that existing trees are retained wherever possible. When new development is proposed, it is essential that consideration is given to the existing green infrastructure network and trees and hedgerows on or adjacent to the site – whether they are protected or not.
- 17.1.2. Both the retention of existing and the provision of new trees and hedgerows are a crucial aspect of site design. Tree survey work following the guidance in [BS5837:2012 Trees in Relation to Design, Demolition and Construction](#) should be undertaken prior to the design of site so it can inform the layout, rather than the layout of the site reacting retrospectively to tree matters.

17.2. Local and National Policy

- 17.2.1. Local Plan Policy 32 states that proposals will be supported where it can be demonstrated that woodlands, trees and hedgerows have been adequately considered during the design process. Proposals need survey information undertaken by a professional which evaluates the features and explains how these have informed the design process. Furthermore, proposals need to explain how retained features will be protected; that there is an adequate buffer; that there is appropriate replacement planting; and that there is the avoidance of the loss or deterioration of woodland.
- 17.2.2. Policy 48 of the Local Plan relates to landscaping of new developments and requires generous tree, shrub and hedgerow planting on new developments.
- 17.2.3. NPPF paragraph 131 requires that new streets are tree lined and that opportunities are taken to incorporate trees elsewhere in the development as well as there being appropriate measures in place for long term maintenance of new and existing trees on site. Trees must be planted in the right places, which requires liaison with the highways officer. Paragraph 180 states that development resulting in the loss of irreplaceable habitats such as ancient woodland or veteran trees should be refused unless there are wholly exceptional reasons for their loss.

17.3. Undertaking a Tree Survey

- 17.3.1. To support a development proposal, a tree survey should be undertaken by a suitably qualified and experienced arboriculturist, following guidance set out in [BS5837:2012](#) (as amended). The [Institute of Chartered Foresters](#) and the [Arboricultural Association](#) both have registers of consultants who have demonstrated their competence in the field.
- 17.3.2. This survey should include information on trees on, and adjacent to the site. The results of the tree survey should be used to inform feasibility studies and design options for the site. As such, the results of a completed tree survey should be provided to designers prior to, and independently of, any specific development proposals.
- 17.3.3. Tree surveys should include all trees included in a typical topographical survey as well as any that might have been missed (e.g. on shrinkable soils, additional off-site trees that could have an effect on foundation design and other needs). The trees should be sequentially numbered and, where appropriate, tagged, with the tags being placed as high as is convenient on the stem of each tree.
- 17.3.4. Hedgerows and substantial internal or boundary hedges (including evergreen screens) should be recorded, with the lateral spread and average (or maximum and minimum) height and stem

diameter ranges recorded, to allow the potential constraints associated with the features to be fully assessed.

- 17.3.5. For a tree, group, woodland and hedgerow etc. to be categorised in the tree survey, it should fall within the scope of that category's definition (U, A, B, C) and, for trees in categories A to C, it should qualify under one or more of the three subcategories (1, 2, 3). Subcategories 1, 2 and 3 are intended to reflect arboricultural and landscape qualities, and cultural values, respectively.
- 17.3.6. Trees of high quality and value (Category A 1, 2 and/or 3), as defined by [BS5837](#) should be retained; trees of moderate quality and value (Category B 1, 2 and/or 3), as defined by [BS5837](#) should normally be retained; and trees of low quality and value (Category C 1, 2 and/or 3), as defined by [BS5837](#) will be considered on the basis of their contribution to local amenity. It should not merely be assumed that they can be removed. Trees that are dead, dying and/or significantly structurally compromised will be category U, meaning they are not retainable irrespective of development at the site.
- 17.3.7. Tree survey data should also include a constraints plan which is essential to informing site design. The plan should show the stem position of the trees, hedges and woodlands, the crown spreads, Root Protection Areas (RPA) and colours to highlight what value the tree is.
- 17.3.8. The Identification of tree categories should be by colour. Please use RGB codes:
- U Dark red 127-000-000;
 - A Light green 000-255-000;
 - B Mid blue 000-000-255; and
 - C Grey 091-091-091.
- 17.3.9. Colours should be verified against [safe web colours](#).
- 17.3.10. Understanding the RPA of trees to be retained is crucial to site design. The default position is that no buildings, carriageways, paths, walls, surface runs and built or excavated earthworks should be located within the RPAs of trees to be retained. It is good practice to include the constraints plan within any information sent to consultants, planners, designers and statutory undertakers etc., and highlight the default position of avoiding the RPAs and canopies of retained trees. This will minimise the potential disturbance to retained trees and reduce the need for site revisions and delays due to tree conflicts.
- 17.3.11. All draft, working and final site layout plans should record the accurate position of, and crown spread of, all trees and hedgerows with appropriate category colour, clearly differentiating between those to be retained and those to be removed. Site layout plans should also include:
- The associated RPAs of trees identified for retention with appropriate category colour;
 - Areas where it would be unreasonable to locate inhabited buildings due to tree constraints; and
 - Structural landscape areas (e.g. green corridors, open space and screen planting).
- 17.3.12. The survey report will likely come with general and specific recommendations / comments about the retention of trees on the site, value and retention etc. from the arboriculturist. This is valuable insight into good practice and the most valuable trees on a potential site, and so is worth giving due consideration to at the design stage.

17.4. Undertaking an Arboriculture Impact Assessment

- 17.4.1. Once the Tree Survey has been undertaken, and its results have informed site design, applicants can either enter into the pre-application process with the Council or move straight to an outline or full application.
- 17.4.2. At pre-application and outline stage, a tree survey following the guidance in [BS5837:2012](#) and a draft tree retention / removal plan will be required as a minimum. Following this and discussions with the case officer and tree officer, the layout can be revised as necessary to account for trees and hedgerow considerations amongst others.
- 17.4.3. At full application stage, an Arboriculture Impact Assessment (AIA) should be undertaken, using information provided by the tree survey. As much information relating to things that could impact retained trees and vice-versa should also be provided to the project arboriculturist to allow a comprehensive AIA to be undertaken.
- 17.4.4. When undertaking an AIA, the project arboriculturist should use information collected in the tree survey, the constraints plan, initial layout proposal, comments from the pre application consultation (if undertaken) and other important information about potential proposed new structures, services (above and below ground), surfaces etc. relating to things that could impact on retained trees and, vice-versa, that could be impacted by existing trees and their future growth to prepare an AIA which evaluates the direct and indirect effects of the proposed design and, where necessary, recommends mitigation.
- 17.4.5. The assessment should take account of any tree loss necessary to implement the design, and any potentially damaging activities proposed in the vicinity of retained trees (within and / or on the perimeter of the RPAs).
- 17.4.6. Such activities may include, or be related to, the removal of existing structures and hard surfacing, the installation of new hard surfacing, the installation of services, and the location and dimensions of all proposed excavations or changes in ground level, including any that might arise from the implementation of the recommended mitigation measures. In addition to the impact of the permanent works, account should be taken of the buildability of the scheme in terms of access, adequate working space and provision for the storage of materials, including topsoil.
- 17.4.7. Mitigation measures required to address the impacts in the retained trees and / or structures may include using a specialist approaches depending on the operation (i.e. special foundation like piling, soil vacuum excavation and cellular confinement systems), or if a specialist approach isn't available/feasible then amendments to the proposal / design.
- 17.4.8. As well as an evaluation of the extent of the impact on existing trees, the arboricultural impact assessment should include:
 - the tree survey;
 - trees selected for retention, clearly identified (e.g. by number) and marked on a plan with a continuous outline;
 - trees to be removed, also clearly identified (e.g. by number) and marked on a plan with a dashed outline or similar;
 - trees to be pruned, including any access facilitation pruning, also clearly identified and labelled or listed as appropriate;

- areas designated for structural landscaping that need to be protected from construction operations in order to prevent the soil structure being damaged;
- evaluation of impact of proposed tree losses;
- evaluation of tree constraints and draft tree protection plan; and
- issues to be addressed by an arboricultural method statement, where necessary in conjunction with input from other specialists (i.e. STATs providers, service/utility engineers, foundation designers etc.).

17.4.9. Where there is considered to be an overriding justification for construction or earthworks within the RPA of retained trees, the project arboriculturist should:

- demonstrate that the tree(s) can remain viable and that the area lost to encroachment can be compensated for elsewhere, contiguous with its RPA; and
- propose measures to mitigate the impact on the soil environment that is used by the tree for growth (e.g. alternative methods of construction or operations to improve soil structure).

17.5. Factoring the Findings into Site Design

17.5.1. Following the completion of the AIA, those involved in the site design should consider the points raised and aim to address them if necessary through amendments to the design of the site or its layout, or by incorporating the arboricultural recommendations into the relevant proposed plans for the proposal to minimise the impact on the tree(s). For example, if a section of cellular confinement systems is proposed it should be shown on the site plans and the proposed hard landscaping plan.

17.5.2. By this stage, providing the trees have been assessed fairly, given due consideration, and the advice of the arboriculturist followed, then from a trees and hedgerows perspective the proposal should be at an adequate stage for consideration via a full planning application.

17.5.3. The documents expected to be submitted to support a full planning application include:

- Tree survey;
- Tree retention/removal plan (finalised);
- Retained trees and RPAs shown on proposed layout;
- Strategic hard and soft landscape design, including species and location of new tree planting;
- Arboricultural impact assessment;
- Existing and proposed finished levels;
- Tree protection plan;
- Arboricultural method statement – heads of terms; and
- Details for all special engineering within the RPA and other relevant construction details.

17.6. Incorporating Trees into Development

- 17.6.1. New tree planting should be recognised from the outset as an integral part of the development of any development scheme, not just schemes where tree removal is proposed. Tree planting should be purposefully designed to complement the proposed features of the development, the features intended for retention and the established landscape character of the area.
- 17.6.2. Development layouts should be designed to ensure that retained and newly planted trees have sufficient space to flourish and mature, and to deliver their full range of environmental benefits without causing harmful nuisance.
- 17.6.3. Trees which are poorly related to buildings can cause structural problems, distress or financial loss to occupants. Even if not affecting trees directly, development layouts may not be acceptable if they would result in pressure for felling or unsightly heavy pruning of retained or key proposed trees in the future.
- 17.6.4. In no circumstances should woodland be included within residential curtilage. A 15m buffer zone will normally be required between the woodland edge and development, although it may be possible to locate non-amenity uses within these areas, such as service roads or garages. Maintaining the ecological connectivity of woodlands via green corridors is a key consideration, and the function of hedgerows is especially important in this respect.
- 17.6.5. Site layouts will be reviewed by the Council's tree and highways officers to ensure they are appropriately located and designed in terms of appropriate tree retention and new landscaping.

Planting Design and Specification

- 17.6.6. Tree planting schemes should be planned and implemented in accordance with the recommendations of BS8545. Probably the most critical factor in tree health and longevity is the provision of enough quality soil for the roots. Tree planting schemes should aim to provide the following rooting volumes (calculated at 0.7m depth) around the tree stem:
 - Small trees (5m – 10m ultimate height) – 4m³ per tree;
 - Medium trees (10m – 20m ultimate height) – 12m³ per tree; and
 - Large trees (20m + ultimate height) – 30m³ per tree.
- 17.6.7. This volume should be provided as either unsurfaced ground (e.g. grass or a planted area), or an engineered tree pit utilising structural soil or cellular structures beneath a hard surface. Planting pits can be individual or linked together with trees evenly spaced along them. In all cases this area should be free from utility services and other obstructions. Engineered tree pits should include necessary ventilation and drainage, and an appropriate grid or porous surfacing around the tree stem.
- 17.6.8. Whilst the provision of sufficient rooting volume for trees will help reduce the incidence of damage to surrounding infrastructure, it may often be appropriate to take further precautions to prevent future conflict between trees, utility services and hard landscaping.
- 17.6.9. Wherever possible, service trenches should be restricted to one side of a tree and / or shared to minimise uncoordinated individual trenches and multiple excavations. To protect underground services, root barriers (enclosing at least the required rooting volume for the proposed tree species), or root deflectors, should be incorporated into planting pit design, and services should be ducted, or polyethylene pipes with welded joints used to prevent root ingress.

17.6.10. The design of street lighting or CCTV schemes should be considered alongside tree planting schemes to avoid conflict and the need for regular, disfiguring tree pruning.

17.6.11. In all cases, early discussion should take place between infrastructure design specialists, highway engineers and the tree officer to ensure that both natural and manufactured infrastructure can co-exist successfully within a development.

Nursery Stock and Species

17.6.12. As well as impact, the benefit of larger tree stock is a lower risk of vandalism. This means better site image and minimising the cost of replacing trees. Typically, trees in prominent locations should be the following size:

- **Prominent locations / immediate impact or screening** – large or mediums species at semi-mature size (girth 20cm – 25cm or 25cm – 30cm);
- **Public realm** – spine road verges, public squares / industrial, retail or employment parks, housing estate communal areas, gardens / car parks / boundary screening – large or medium size (girth 20cm – 25cm) or extra heavy standard size (girth 16cm – 18cm);
- **Elsewhere within the development** – large and medium species at extra – heavy standard (girth 14cm – 16cm) or heavy standard (girth 12cm – 14cm);
- **Housing estate private gardens** – a mix of medium and small species at extra heavy standard (girth 12cm – 14cm) or selected standard (girth 10cm – 12cm);
- **Structure planting** – for screen, boundary and roadside planting, an appropriate mix of transplants and feathered trees is typical. 5% - 10% of larger feathered trees (175cm – 200cm overall height) should be provided for an element of ‘instant maturity’;
- **Woodland planting** – the species mix should be of native origin and representative of local character based on the National Vegetation Classification (NVC) and site survey, providing an appropriate mix of canopy and understory species. Typically a mix of transplants and feathered trees on a 1.5m or 2m staggered grid. In larger schemes, the provision of ground / herb layer planting may be appropriate (e.g. glades and ride margins);
- **Hedging** – hedges are valuable for blending development into its surroundings and for linking wildlife habitats. Species selection is important to ensure successful establishment, the right growth habit, wildlife value and landscape character. Planting an appropriate native mix of transplants as single or double staggered rows is typical. Incorporating larger feathered trees (175cm – 200cm overall height) every 5m – 10m will provide an element of ‘instant maturity’.

Street Trees

17.6.13. NPPF paragraph 131 requires new streets to be tree lined. Doncaster Local Plan paragraph 12.38, which elaborates on Policy 48 of the Local Plan requires, as part of on-site tree planting, that street trees should be designed into the public realm.

17.6.14. The requirement for new streets to be tree lined, means new development should provide street trees in the adoptable public realm. The Council will not accept trees provided in private residential spaces, such as front gardens, or trees in open space, to count as delivering ‘tree

lined streets'. Street trees should be delivered in the adoptable highway, which will ensure they can be managed by the Local Authority and will not be at risk of removal or damage from homeowners, as they may be if located in gardens.

17.6.15. Street trees are one component of the overall delivery of trees on new housing schemes, and they should be delivered in line with the above guidelines. In line with NPPF paragraph 131, applicants must also “work with highways officers and tree officers to ensure that the right trees are planted in the right places, and solutions are found that are compatible with highways standards and the needs of different users.”

Replacement Tree Planting

17.6.16. Where the development of a site results in the loss of trees, these must be compensated for. The number of trees required to compensate for those lost depends on the size of the trees to be lost.

17.6.17. Financial contributions in respect of tree planting will be required where either:

- new planting is required on public land to mitigate the impact of a development, where planting cannot be accommodated within the site boundary; or
- where trees are felled on public land as a direct result of development.

17.6.18. Replacement tree planting requirements are as follows:

Table 5 - Replacement Trees Planting Requirements

Trunk diameter or tree lost to development (cm measured at 1.5m above ground level)	Number of replacement trees
Less than 19,9	1
20 – 29.9	2
30 – 39.9	3
40 – 49.9	4
50 – 59.9	5
60 – 69.9	6
70 – 79.9	7
80 +	8

17.6.19. Contributions will be expected to cover the cost of purchasing the tree(s), planting, protecting, establishing and initially maintaining the new tree(s).

17.6.20. The number of replacement trees set out in Table 5 is based on the planting of heavy standard nursery stock. However, the numbers may be reduced proportionately for the use of larger nursery stock in accordance with the above guidance on planting design and specification, or where a site will not accommodate a specified number.

17.6.21. Off-site tree planting will take place as close to the site as possible and within the ward containing the site. Where replacement planting will take place into an area of highway verge or hard standing, the contribution will be expected to cover the cost of an engineered tree pit.

17.6.22. All tree planting on public land is to be undertaken by the Council to ensure a consistent approach and level of quality, and to reduce the likelihood of new tree stock failing to survive.

17.6.23. Please note, [Table 5](#) does not apply to the replacement of trees within woodland. For more information on this, please liaise with the Council's ecologists.

17.7. Arboricultural Method Statements

17.7.1. An Arboricultural Method Statement (AMS) is a working document which is provided to the contractor or builder on site. The AMS details the methodology for any aspect of the development which is with the RPA of retained trees, or has the potential to result in loss of, or damage to a tree to be retained, in order to minimise the damage.

17.7.2. The contents of an AMS will vary from site to site but typically should address the following:

- removal of existing structures and hard surfacing;
- installation of temporary ground protection and temporary tree protection fencing in conjunction with the Tree Protection Plan; being phased / detailing alterations if required as the development progresses;
- excavations and the requirement for specialized trenchless techniques;
- installation of new hard surfacing – materials, design constraints and implications for levels;
- specialist foundations – installation techniques and effect on finished floor levels and overall height;
- retaining structures to facilitate changes in ground levels;
- preparatory works for new landscaping;
- auditable/audited system of arboricultural site monitoring, including a schedule of specific site events requiring input or supervision; and
- the arboricultural method statement should also include a list of contact details for the relevant parties.

17.8. Tree Protection Plans

17.8.1. Tree Protection Plans (TPP) should detail how retained trees will be protected during the construction of a site. This should be superimposed on the layout plan, based on the topographical survey and showing all hard surfacing and other structures within the RPA of retained trees.

17.8.2. The TPP should clearly indicate the precise location of protective barriers to be erected to form a construction exclusion zone around the retained trees. It should also show the extent and type of ground protection, and any additional physical measures, such as tree protection boxes that will need to be installed to safeguard vulnerable sections of trees and their RPAs where construction activity cannot be fully or permanently excluded by the temporary fencing.

17.8.3. These protection measures should be shown on the plan, accompanied by a written description as required. In locations where the fencing can't protect the entire RPA, barrier and ground protection offsets should be dimensioned from existing fixed points on the site to enable accurate setting out.

- 17.8.4. Where temporary access is needed into a construction exclusion zone created by the temporary fencing, the extent of the set-back of the permanent barrier should be clearly indicated, along with the temporary ground protection measures to be adopted for the duration of the works within the RPA and it should be done under supervision by the project arboriculturist.
- 17.8.5. These details should also be incorporated into relevant subsequent plans, method statements used for design purposes, and construction drawings issued for use on site, to ensure that all interested parties are fully aware of the areas in which access and works may and may not take place.
- 17.8.6. In both the case of AMSs and TPPs, a completed detailed version can be submitted as part of a full planning application, although in some cases this may be left to a pre – commencement condition to prevent delays. However, in cases where the site is heavily constrained by trees, or where it has valuable trees, these documents will need to be agreed prior to the approval of an application.



18. Waste and Recycling

18.1. Introduction

- 18.1.1. Sustainable waste management is an important component of Doncaster Council's strategies and policies. The Council is committed to minimising the amount of waste sent for disposal and maximising the reuse, recycling and recovery of energy from used products and waste materials.
- 18.1.2. Ensuring there is suitable provision for the storage and collection of waste and recycling on new developments (and redevelopments) is a fundamental component of good residential site design.

18.2. Local and National Policy

- 18.2.1. Local Plan Policy 44b (10) notes that housing proposals will be supported where they make satisfactory arrangements for the storage and collection of waste and recycling. The same applies to Houses in Multiple Occupation (HMOs) as Policy 9b requires that *"external communal areas and facilities are of sufficient size and standard to satisfactorily accommodate waste and recycling bins"*.
- 18.2.2. The [National Planning Policy for Waste](#) (Section 5, paragraph 8) states that residential premises should have *"adequate storage facilities at residential premises, for example by ensuring that there is sufficient and discrete provision for bins, to facilitate a high quality, comprehensive and frequent household collection service"*
- 18.2.3. Developers should note British Standard BS 5906 (Waste management in buildings – Code of practice) guidance and recommendations.

18.3. Waste Container Provision and Storage

- 18.3.1. Doncaster Council operates a standard alternate weekly waste and recycling collection service whereby each residential dwelling liable for Council Tax is entitled to receive the same level of service.
- 18.3.2. Waste container provision is calculated on the basis that each dwelling receives the following storage capacity each fortnightly cycle.

Table 6: Waste Container Sizes in Doncaster

Container Type	Bin Size	Purpose
Black wheeled bin	240 litre	Non – recyclable waste
Blue wheeled bin	240 litre	Mixed dry recyclables
Green wheeled bin	240 litre	Garden waste
Green box	55 litre	Glass bottles

- 18.3.3. Waste containers may not be stored permanently on the highway. A suitably sized storage location is a pre-requisite for all new developments and redevelopment proposals, which must be within the curtilage for all new developments.
- 18.3.4. Bin storage areas should be conveniently located for the occupants of the dwelling and should enable free movement of wheeled containers to the designated collection point over smooth continuous surfaces - gradients between the storage area and collection point should be no more than 1:12 with no steps, kerbs or obstructions along the route.

- 18.3.5. Service changes are inevitable from time-to-time, developers are advised to check that their proposals are compliant with the current service model operating before making a planning application. The Council recommends redundancy is built into proposed storage areas where possible to accommodate future changes / additional containers.

Traditional Forms of Housing

- 18.3.6. For traditional forms of housing, the Council requires the provision of dedicated outside space, within the curtilage of each dwelling, for the storage of a suite of containers in accordance with [Table 6](#).
- 18.3.7. External storage areas must be sensitively located, bin stores are not a specific requirement but should be considered if the proposed location of the bins will be more prominent within the street scene.

Houses in Multiple Occupation (HMOs)

- 18.3.8. HMOs generally remain eligible for the same level of service as traditional forms of housing but the Council may provide an additional 240 litre black bin for HMOs where necessary. The manager of a HMO must make additional arrangements for excess waste produced by their tenants where the Council's standard service provision proves inadequate, such as with larger HMO developments and HMO conversions of commercial buildings. Requests for additional capacity would be dealt with as commercial agreements with charges for collections.
- 18.3.9. External bin storage areas must be sensitively located, especially where the HMO is being created from an existing single residential dwelling. The amount of waste generated may lead to problems if not designed out at the planning stage. Therefore, guidance in 18.3.10 to **Error! Reference source not found.** detailed below should also be followed for such HMO proposals.

Apartments and Flats

- 18.3.10. For apartments and flats communal bin stores will likely be required. These may be internal or external and should be sufficiently sized to accommodate the equivalent bin capacity to the standard domestic service in table 6 multiplied by the number of dwellings.
- 18.3.11. Communal bin capacity can be provided using a mix of 240, 360, 660 and 1100 litre wheeled bins. However, please note:
- Green bins should be excluded from calculations where occupants do not have their own private gardens and / or where communal grounds are managed by a contractor;
 - Glass can only be collected in 240L bins due to weight.
- 18.3.12. For example, a new apartment scheme with 10 dwellings will be expected to provide ample storage capacity to accommodate:
- 10 x 240L = 2400L capacity for non-recyclable waste;
 - 10 x 240L = 2400L capacity for mixed dry recyclables;
 - 10 x 55L = 550L capacity for glass.
- 18.3.13. For existing building stock / redevelopment projects where insufficient space exists to accommodate the number of communal bins required to meet the standard capacity provision on a fortnightly collection cycle, the Council will consider implementing a weekly collection service at 50% bin capacity. However, for new developments, the developer must make adequate provision for waste storage and collection to accommodate collection on the standard fortnightly cycle.

- 18.3.14. Bin storage areas should be located in a position which is mutually convenient and easily accessible for both the occupants of the development and the refuse collection vehicle / crew. They should be located within 30m of the building. Where access to the bin store by the collection vehicle / crew is impracticable, the managing agent is responsible for arranging the movement of bins to a suitable collection point (at the curtilage) on collection day.
- 18.3.15. Bins should not be located in a position that would cause unacceptable fire hazard, noise, odour or other nuisance. They should not be placed on fire escape routes and must not cause obstruction nor be easily obstructed, preventing free movement of bins for collection purposes.
- 18.3.16. Both the bin stores and access to them should be lit when dark, and should include smooth impervious surfaces laid to an appropriate fall to a foul drain to enable cleansing.
- 18.3.17. The location of any bin storage area must be within the ownership of the building owner (or if not, have a legal agreement drawn up to permit the use in perpetuity).
- 18.3.18. Where possible, bins should be kept in a self-contained structure. This should allow comfortable access to all bins inside it without needing to move one to access another. It should be accessed by a key / keypad to prevent unauthorised access.
- 18.3.19. Doorways of bin stores should have double doors opening outwards and provide a clearance of 1.54m minimum (including door thickness), positioned so as to enable the removal and replacement of bins without being obstructed.
- 18.3.20. Bin stores should not be visually detrimental to the locality, nor located on, or immediately adjacent to, a public footpath or highway, so as not to impede/obstruct visibility splays to the highway network but kept within 5m of the highway boundary. They should be at least 1.8m high and can be a close boarded vertical (external treated) timber fencing construction or brick wall (or similar).
- 18.3.21. Bin stores should be either a stand-alone separate structure, or if integrated within the development building, accessed directly from outside in the open air, with appropriate fire separation from the building and means of escape, fire detection and be properly ventilated.
- 18.3.22. Bin stores must not be accessed directly from the inside of a building, to ensure compliance with Building Regulations and fire safety requirements. If an internal bin store access is the only solution, this must be by way of a protected lobby (i.e. two sets of self-closing fire doors with sight panels) which is provided with not less than 0.2m² of permanent ventilation. However, specialist advice should be sought regarding fire risk assessment and internal bin store construction before any such work is undertaken.
- 18.3.23. The building owner/management company must ensure that a documented waste management plan is produced and implemented so as to ensure a designated person/body keeps the storage area clean, free from uncontained waste and pests and to facilitate any other actions necessary to ensure the waste storage area is properly managed and maintained.

18.4. Collection

- 18.4.1. For housing which is situated on an adopted highway containers will be left on the curtilage edge or the edge of the highway on specified collection days and returned to the storage area as soon as possible after being emptied.

- 18.4.2. For housing which is on a private drive / un-adopted highway refuse vehicles will not be permitted to enter the street, nor are such drives designed for refuse vehicles. Therefore, a collection point with hardstanding for bins should be provided adjacent to where the private drive meets the adopted highway. This must be large enough to allow each resident to leave 2 x 240L bins and their 55L box in the one location for collection. The location should be within 5m of the public highway to avoid refuse vehicles being stationary for too long and disrupting traffic flow.
- 18.4.3. Private drives should not be within 20m of a new junction into a development and their relationship to the main highways should be considered carefully, including the proximity of junctions and the amount of bin collections required (and likelihood of impacting traffic flows).
- 18.4.4. Main roads in developments should have a width of 5.5m to allow unobstructed movement of refuse vehicles through it. Main roads will require turning heads that can facilitate a minimum 3 point manoeuvre without the refuse vehicle overhanging onto driveways or footways.
- 18.4.5. The Council operates 26 tonnes refuse collection vehicles as standard. For tracking refuse vehicle movements, the Council currently use the Phoenix 2 – one pass (with Elite 6x4 chassis). It should be noted this is subject to change depending on contracts.
- 18.4.6. For flats, apartments and HMOs where communal bins are used, the building owner/management company must ensure that a documented waste management plan is produced and implemented, so as to ensure a designated person/body places bins out for collection, returns them to the storage area, keeps the storage area clean, free from uncontained waste and pests and to facilitate any other actions necessary to ensure the waste storage area is properly managed and maintained.

Appendix A – Ecological Impact Assessment (EcIA) Checklist

EcIA Report Section	EcIA Criteria (to ensure decisions are based on adequate information in accordance with Clauses 6.2 and 8.1 of BS42020:2013)	Yes No N/A	Paragraph reference number(s)
Pre-app/ scope	1) Where pre-application advice was received from the Local Planning Authority it has been fully accounted for in the EcIA.		
	2) The scope, structure and content of the EcIA is in accordance with published good practice ¹²¹³¹⁴ .		
Surveys, Sites, Species and Habitats	3) The surveys are adequate ¹⁵ and up to date ¹⁶ . a. A desk study has been undertaken, including a data search from Doncaster Biological Records Centre ¹⁷ . b. A UK Hab survey and map has been undertaken. c. Additional 'Phase 2' ecology surveys have been undertaken (where necessary) ¹⁸ .		
	4) All statutory and non-statutory sites likely to be significantly affected have been clearly identified.		
	5) All protected or priority species and priority habitats likely to be significantly affected have been clearly and correctly identified, and adequate surveys ¹⁹ undertaken to inform the baseline.		
	6) Any non-native plant species present are clearly and correctly identified.		
	7) Where a separate PEA report states that Phase 2 surveys are required these have been undertaken in full and reports detailing the results submitted with the application (or the lack of any such surveys is fully justified).		

¹² CIEEM (2017) Guidelines for Ecological Report Writing.

¹³ CIEEM (2018) Guidelines for Ecological Impact Assessment.

¹⁴ BS42020:2013 Biodiversity – Code of Conduct for Planning and Development.

¹⁵ Adequate ecological information is defined as being *appropriate* (i.e. the right type of surveys for the site and the receptors likely to be found) and *sufficient* (i.e. there is sufficient effort in view of the time, size, complexity etc of the site to ensure all likely receptors are adequately accounted for – such as abundance and distribution) (refer to BS42020:2013 Clause 6.2).

¹⁶ CIEEM (2019) Advice note on the Lifespan of Ecological Reports and Surveys.

¹⁷ Based on the approach described in Section 2 of CIEEM's Guidelines for Preliminary Ecological Appraisal (2018).

¹⁸ See Section 3, Box 4 and Appendix 5 of CIEEM's Guidelines for Preliminary Ecological Appraisal (2018).

¹⁹ See Section 1 Box 1 of CIEEM's Guidelines for Preliminary Ecological Appraisal (2018).

Impacts and Effects	8) The assessment is based on clearly defined development proposals along with relevant drawings/plans (and any plans used are the same version number as those submitted with the application)		
	or 9) The residual ecological effects are considered to be not significant at any geographical scale irrespective of the detailed development proposals, and the assessment is based on a worst-case-scenario.		
	10) The report describes and assesses all likely significant ecological effects (including cumulative effects) clearly stating the geographical scale of significance (where relevant).		
Mitigation, Compensation & Enhancement	11) The mitigation hierarchy has clearly been followed ²⁰ .		
	12) The report: a. Clearly identifies the proposed mitigation and compensation measures, and explains how these will adequately address all likely significant adverse effects b. Includes, where necessary, proposals for post-construction monitoring c. Recommends how proposed measures may be secured through planning conditions/obligations and/ or necessary licences		
	13) A summary table of proposed mitigation and compensation measures has been provided.		
	14) The need for any mitigation licences required in relation to protected species is clearly identified.		
	15) Proposals to deliver ecological enhancement/Biodiversity Net Gain have been provided.		
	16) Limitations ²¹ of the ecological work have been correctly identified and the implications explained		
	17) All relevant key timing issues (e.g. site vegetation clearance or roof removal) that may constrain or adversely affect the proposed timing of development have been identified.		

²⁰ In accordance with Paragraph 180 of the National Planning Policy Framework (England, 2021).

²¹ An explicit understanding of any limitations for the ecological work should be provided in accordance with Clause 6.7 of BS42020:2013 (including limitations associated with: survey methods, adequacy of equipment, reference to relevant desk top data, interpretation and analysis of results, competency of all ecological surveyors and personnel undertaking the impact assessment and design of mitigation).

Competence / Good Practice	18) All ecological work and surveys accord with published good practice methods and guidelines OR deviation from such guidelines is made clear and fully justified, and the implications for subsequent conclusions and recommendations made explicit in the report ²² .		
	19) All ecologists and surveyors hold appropriate species licences (where relevant) and/or have all necessary competencies to carry out the work undertaken.		
Conclusions	20) The report clearly identifies where the proposed development complies with relevant legislation and policy, highlighting any possible non-compliance issues, and highlighting circumstances where a conclusion cannot be drawn as it requires an assessment of non-ecological issues (such as socio-economic ones)		
	21) The report provides a clear summary of losses and gains for biodiversity, and a justified conclusion of an overall net gain for biodiversity		
	22) Justifiable conclusions ²³ based on sound professional judgement ²⁴ have been drawn as to the significance of effects on any designated site, protected or priority habitat/species or other ecological feature, and a justified scale of significance has been stated		

²² Deviation from standard methods and guidance must be reported in accordance with BS42020:2013 (Clauses 4.4, 6.3.6 to 6.3.9 and 6.7). CIEEM has published and signposted to relevant guidance in its online Resource Hub (cieem.net/resource-hub).

²³ In accordance with CIEEM's Guidelines on Ecological Impact Assessment (2018).

²⁴ Further information on how to provide robust justification for any deviation in methods used from those published in good practice guidance is provided in CIEEM (2016) Pragmatism, Proportionality and Professional Judgement. In Practice. Issue 91; page 57. EclA Criteria (to ensure decisions are based on adequate information in accordance with Clauses 6.2 and 8.1 of BS42020:2013)

Appendix B – HIA Pathway

